IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

WORLD SERVICE OFFICE, INC. : CIVIL ACTION

vs. :

DAVID MOORHEAD : NO. 90-7631

PHILADELPHIA, PENNSYLVANIA
January 2, 1991
BEFORE HONORABLE LOUIS H. POLLAK, J.

APPEARANCES:

FOR THE PLAINTIFF: SYNNESTVEDT & LECHNER
BY: JOHN T. SYNNESTVEDT, ESQUIRE
SCOTT J. FIELDS, ESQUIRE
2600 One Reading Center
1101 Market Street
Philadelphia, Pennsylvania 19107

FOR THE DEFENDANT: DAVID MOORHEAD,
Pro Se

GREGG B. WOLFE, RPR
OFFICIAL COURT REPORTER
601 Market Street, Room 2722
Philadelphia, Pennsylvania 19106
(215) 925-6409

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(The Court began the proceedings at 10:50 a.m.)

THE COURT: We are here in the matter of World Service Office versus David Moorhead. This is a lawsuit in which the plaintiff, World Service Office, is alleging that the defendant, Mr. Moorhead, is engaged in the distribution of texts which the plaintiff has a federally protected proprietary interest in under the copyright and trademark provisions of federal legislation. And it is also alleged that the distributions violate certain common law rights, including an entitlement on the plaintiff's behalf to be free from what is called unfair competition by defendant.

The immediate application is the catalyst for today's hearing, which is an application for a Temporary Restraining Order pending further activity in this lawsuit, a lawsuit which was begun very recently in December; in particular, pending the hearing by this court of an application for a preliminary injunction restraining Mr. Moorhead from various distributions and related activities that are intended by the plaintiff to be destructive of the plaintiff's rights.

Plaintiff seeks a temporary restraining order to maintain the status quo pending consideration of a preliminary injunction application; maintenance of the status quo by requiring the defendant to desist from

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distributions on other related activities that plaintiff contends would cause it irreparable injury pending consideration of the application for a preliminary injunction. So it is that which brings us to court this morning.

Now, I talked on the phone with plaintiff's counsel, Mr. Synnestvedt. I believe Mr. Fields was on the phone at the same time and with the defendant, Mr. Moorhead, who at the time was uncounseled. Actually, we've had two telephone conversations. They were approximately a week apart; I believe one about the 20th, and the second about the 27th of December.

The second of those conversations, I scheduled today's hearing, but I called upon the parties to undertake to see if they could reach at least some interim agreements that would obviate the need for holding a hearing today. If possible, through discussion, the parties could arrive at mutually acceptable arrangements, while not perhaps representing in full what either party would want, acceptably preserve a status quo until such time comes as we proceed on the application for a preliminary injunction, a time which would be some weeks hence.

Of course, I also hoped, but not with any great confidence, that the parties by talking together might

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indeed be able to work out a comprehensive resolution of their difficulties. Since that last conversation, I have received communications which have not been very encouraging.

Mr. Moorhead wrote me on the 28th. Well, actually, what Mr. Moorhead sent me was not a letter to me, but copies of two letters from himself to Messrs. Synnestvedt and Fields dated December 28th. Both of those expressed the sense that up to that point there was no meeting of the minds, and he had reflected Mr. Moorhead's readiness to continue talking.

Meanwhile, Mr. Synnestvedt also wrote me on the 28th -- his was a letter to me with a copy to Mr. Moorhead -- "unfortunately, we report that we were unable to reach an agreement with the defendant despite considerable efforts expended by both parties last evening and today."

I also received in the mail, but I don't know from whom, a xerox copy of -- it is evidently a letter from a Mr. Emmons, Greg Emmons to David M. dated December 27, 1990, and it appears from the letter that Mr. Emmons is a lawyer in Doylestown, but was advising Mr. M -- who I take it that this is related to our situation, that internally it appears to be since it speaks of litigation brought on by the World Service Office -- expressed, Mr.

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Emmons, regrets that he cannot serve as Mr. M's lawyer. He expressed a willingness to serve as an arbitrator, if the case moved to any such stage.

Is this a -- well, let me inquire. Mr. Moorhead, is this a communication that was sent to me by you? Do you know what I'm talking about?

MR. MOORHEAD: Sir, if you would show it to me, I could identify it for you.

MR. SYNNESTVEDT: It's unfamiliar to me, Your Honor.

MR. MOORHEAD: Yes, sir, that is something that I sent to you.

MR. SYNNESTVEDT: May I look at it, Your Honor?

THE COURT: Of course. Anything that is sent to the Court by one of the parties, of course, should be sent to the other side.

MR. SYNNESTVEDT: No, it was not sent to me, Your Honor, at least I have not received it.

THE COURT: Mr. Bach, I wonder if I could ask you to make a copy of that, and give that to Mr. Synnestvedt.

MR. MOORHEAD: Your Honor, not being a lawyer, I'm not familiar with all the various and sundry procedures that are required, and I beg the Court to understand. I'm not trying to in any way, you know, make

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it more difficult for the opposing counsel.

THE COURT: I'm sure that's true. I'm sure Mr. Synnestvedt understands that. The basic ground rule, Mr. Moorhead, that you should be aware of as long as you are unrepresented by counsel, is that -- well, it's two-fold. It is, first of all, that anything that is sent to the Court must be filed with the clerk's office, so that it becomes in some formal sense a document of record. It's entirely appropriate to send a copy. Indeed, it's an appreciated courtesy to send a copy of materials that are filed with the clerk's office to the Judge. But the parties have a responsibility to see to it that documents are filed with the clerk's office so that there is a running formal record, and that filing is not accomplished simply by sending communications to the Judge or the Judge's chambers.

The other procedural principle that you should have in mind, Mr. Moorhead, is that anything that is submitted in a court proceeding to the Court, that is filed with the clerk's office and sent to the Judge, must also be served on the other party or parties.

Now, in our last phone conversation, Mr. Moorhead and Mr. Synnestvedt, we did talk about the questions, Mr. Moorhead, of your being represented by counsel, and I was led to understand that you were

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continuing to talk to lawyers, but I see you here today without any lawyer with you.

Are there any current prospects of your having an attorney?

MR. MOORHEAD: Well, sir, yes. However, the only one that indicated that they would be willing was asking for $10,000. All of the volunteer agencies due to the snow and their volunteers year-end with their regular firms and all that stuff, they were not able to do any intakes on me. They were not, you know, able to provide anything. And, in fact, a lot of them were shutdown for a week. It's a very strange situation for me, Your Honor.

THE COURT: Well, you told me on the phone when we were talking on the phone that you expected to see somebody on Monday. That would be last Monday, the 31st?

MR. MOORHEAD: Yes, sir.

THE COURT: I take it that was not fruitful, or is there to be some further meeting?

MR. MOORHEAD: That is correct, it was not fruitful. I went on Friday as well. I showed up in the snow. They told me to come in. When I got there, there was no -- nobody showed up to do any intake. I subsequently called the VIP main office, and they had --

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Karen Foreman was not there. The only person that was there was the secretary.

I mean, you know, I really believe that I tried to do my best to obtain counsel, and I'm continuing in that endeavor.

THE COURT: Well, now that the holidays are over, would you be back in touch with VIP or other of these agencies?

MR. MOORHEAD: Absolutely, sir.

THE COURT: All right, good. Well, I think for today's purposes we will have to go forward as we are now situated. I regret that you don't have counsel with you, Mr. Moorhead, but we'll all undertake to take account of that fact.

Mr. Wolfe has suggested another attorney, whose name you might well like to have who is very able, indeed, and does certainly a certain amount of pro bono work; Julie Shapiro. Her number is listed here in the Legal Directory as 922-5135. Her current office listing is very close to here over in the Bourse Building. If she is available, she certainly would be a very good suggestion, very capable.

Well, we will proceed now. Mr. Synnestvedt has since submitted a statement, which I take it has been communicated also to Mr. Moorhead. It arrived in my

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chambers this morning. It is a statement identifying witnesses and documents to be relied upon by the plaintiff at today's hearing.

Good. Well, Mr. Synnestvedt, I'll turn the lectern over to you, sir.

MR. SYNNESTVEDT: Thank you, Your Honor.

THE COURT: I say I turn the lectern over. I don't mean that you're obliged to speak from there, if you'd be more comfortable sitting at counsel table. You and Mr. Moorhead both may find it easier to have access to papers sitting at the table. You may proceed any way you wish.

MR. SYNNESTVEDT: I'd like to call Mr. George Hollahan to the stand.

THE COURT: All right.

GEORGE LOVETT HOLLAHAN, III, was duly sworn.

DIRECT EXAMINATION

BY MR. SYNNESTVEDT:

Q. What is your address, Mr. Hollahan?

A. My home address?

Q. Yes, please.

A. 18936 Kilfinan Street, Northridge, California.

Q. What is your occupation?

A. I am an executive assistant at the World Service Office.

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Q. Could you indicate your duties and functions for us, please?
A. My responsibility is to oversee the Fellowship Services of the World Service Office. Among the departments in that division includes the Literature and Translations Department, the Group Services Department, the Hospital and Institutions Department, the Public Information Department and the International Department.
Q. Are you testifying today in your capacity as an executive assistant at World Service Office?
A. Yes, I am.
Q. How long have you been associated with the operation of the Fellowship of Narcotics Anonymous?
A. Over ten and-a-half years.
Q. Will you please briefly describe the history of the Fellowship of Narcotics Anonymous?
A. The Fellowship, where we understand where we started, was in 1953 in southern California. A group of members, who had previously attended an Alcoholics Anonymous meeting who were looking for something more appropriate to their recovery, began the first meetings of Narcotics Anonymous in 1953.

During the 1950's and 1960's, it was very slow. There was not a whole lot of change in the organization at the time. It consisted of small groups located mainly

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in California, both in southern and northern California.

Beginning in the mid 1970's, the Fellowship began to experience a profound growth which continued on through the 1980's.

Narcotics Anonymous adapted principles that had been used by Alcoholics Anonymous. There are 12 steps and 12 traditions, and adapted them for our use.

That is our original formation of our groups in the way that the Fellowship started.

Q. Will you briefly now describe the philosophy of Narcotics Anonymous?

A. Well, the philosophy of Narcotics Anonymous is stated in what we call the 12 traditions. The 12 traditions are a set of 12 principles by which we as a Fellowship interact with one another and also interact within the society around us.

These principles -- the principle of the first tradition is in a unity of our common welfare, that the good of the whole is our main concern, although the good of the individual is to follow shortly thereafter.

The other principles that are outlined in our tradition includes the second tradition that provides for an ultimate authority as expressed through each group's conscience. It also provides what we call trusted servants or NA leadership.

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The third tradition talks about the only requirement for membership being the desire to stop using, meaning that anyone who suffers from addiction is welcome.

The fourth tradition goes on to restate again what the first tradition says, that our groups are autonomous, and only in matters affecting other groups as a whole should they consult outside of their conscience.

The fifth tradition talks about the primary purpose, and that is to carry the message.

The sixth tradition talks about not endorsing any outside enterprises.

The seventh tradition talks about Narcotics Anonymous remaining self-supporting, declining outside contributions of any kind.

The eighth tradition talks against the professionalism of Narcotics Anonymous and provides for service centers.

The ninth tradition provides for a service structure.

The tenth tradition talks about NA not having an opinion on an outside issue.

The eleventh tradition speaks to our public relations policy and personal anonymity.

And the twelfth tradition talks about practicing

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principles of personalities. That is the general philosophy of NA.

Q. Approximately, how many members are there in Narcotics Anonymous?

A. I would estimate that there is somewhere approximately 400,000 members across the world.

Q. And approximately how many members -- how many groups are there?

A. We estimate that there are some 20,000 groups across the world.

Q. Now, you mentioned a service structure. What is the service structure of Narcotics Anonymous?

A. Service structure is created by our groups to do those things that the groups can't do or shouldn't do among themselves. They consist of what we call an area service committee, which is a localized committee, more in line with a metropolitan or county type of system. It is in the area committees that most of the service work is actually done.

The next level of organization is our regional service committees, which are more or less on the same lines as state boundaries. The purpose of the regions is to bring together those areas in groups that they serve within their boundaries, and to bring together the Fellowship to large gatherings, and discuss issues that

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are important to the Fellowship within the area that they serve, and also discuss World Service issues.

The World Service Conference is the place where all the representatives from the different regions across the world come together once a year to discuss issues facing the Fellowship as a whole.

Q. You mentioned World Service Conference. What does the World Service Conference do?

A. The World Service Conference meets annually to discuss those issues that have been put out to the Fellowship 90 days in advance.

It also discusses issues that concern the three World Service arms, which consist of the World Service Conference Committees, the World Service Board of Trustees, and the World Service Office.

Q. World Service Office being the plaintiff in these proceedings; is that correct?

A. Yes, sir.

Q. Would you describe now for us the World Service Office?

A. The World Service Office was initially created back in the mid 1970's as a place where Narcotics Anonymous literature could be produced and published and protected. It also served as a main communication for the Fellowship at large in its later days. The original

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creation of the office was to provide the Fellowship with a legally recognized entity by which the Fellowship could conduct business with the society around it, be able to protect our literature and protect the properties of Narcotics Anonymous as approved by the World Service Conference.

The other responsibilities have grown over the years. Certainly one of the chief responsibilities is the distribution of that literature to our groups and to the general public.

The other responsibility we have is really serving as the main center of communication within the Fellowship. It's usually done in a variety of ways, through telephone calls, mailings, newsletters, these types of things.

We have also become involved with giving administrative support to the conference committees and the World Service Board of Trustees, and the carrying on of their work.

Q. Is the World Service Office a corporation?

A. Yes, it is.

Q. Is it a corporation for profit?

A. It is a non-profit corporation.

Q. How is Narcotics Anonymous Fellowship literature developed and approved?

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A. Well, it can be initially developed in a variety of ways. Sometimes it can be initiated by an individual member. It can be developed within a committee. But any literature that is offered to the Fellowship and proposed to the Fellowship is given to the World Service Conference, the literature committee, who then goes about a process in developing that literature, making sure that the message is consistent with the message of Narcotics Anonymous.

The literature committee is made up of members from around the Fellowship so that it gives a unified focus. And one of the responsibilities of the literature committee is to put a piece of literature in final form, and then offer it to the Fellowship, and eventually having the World Service Conference approve it, who then hands it over to the World Service Office to produce and publish.

Q. Do you have a personal relationship or responsibilities with relation to the literature committee?

A. I oversee the general administration and coordination of the literature activities of the World Service Office.

Q. Who holds the legal title to the copyrights, trademarks and servicemarks of the publishing?

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A. The World Service Office, Incorporated.
Q. Has the World Service Conference ever allowed the World Service Office to produce the duplication of literature?
A. Only in four instances where there have been agreements which the Fellowship committee oversees.
Q. Has World Service Conference permitted World Service Office to grant permission to any individuals, any entities other than those four service offices which you mentioned?
A. No, sir.
Q. Did the last World Service Conference ever ask the World Service Office to take action to enforce the trademark and copyright rights of the Fellowship?
A. Yes, it has. The conference has approved in the early 1980's by accepting the by-laws of the World Service Office, setting up the fiduciary trust relationship, and the responsibility of protecting NA's literature. And again in 1989, when the manager and chairperson of the World Service Office asked the World Service Conference for permission to proceed legally against infringers.
Q. How many works does the World Service office currently publish?
A. We publish one book titled Narcotics Anonymous, also

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known as our Basic Text. We also produce about 20 different pamphlets, them plus handbooks and various materials, such as key tags and medallions for the Fellowship at large.

Q. Is the book that you referred to as the Basic Text the most important of these works that are published by the World Service Office?

A. Yes, it is.

THE COURT: I wonder if I might break in for a moment, Mr. Synnestvedt.

BY THE COURT:

Q. Mr. Hollahan, you described an instance or two in which the World Service Conference has instructed the World Service Office. Now, that would be what, by vote of the conferees?

A. Or by consensus, asking for a consensus of the conference.

Q. Apart from directives from the conference, who makes decisions for the World Service Office?

A. There is a board of directors which consists of 12 members who are elected directly and indirectly by the conference.

Q. You say elected directly and indirectly?

A. Well, we have a system that creates a pool of nominations from which the board of directors may

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select. I believe it's three members to serve a one-year term each year. So it's a pool of nominees, preferably more than the number of seats that are available by which the remaining members of the board select to sit for a year.

Q. And the term of a director is a year?

A. The term of directors -- there's two terms. Three of them will serve one-year terms, and the other nine serve three-year terms and may be elected again.

Q. Now, responsive to the board of directors is a -- is some sort of executive secretary or something of the sort, some group of officials of whom you are one?

A. Yes. There are approximately 40 employees of the World Service Office who are directly answerable to the board of directors.

Q. Your title is executive assistant?

A. That is my title, my classification. My official title is administrator for Fellowship Services.

Q. Administrator for Fellowship Services?

A. Yes, sir.

Q. And to whom are you accountable?

A. Well, under normal circumstances, I would be accountable to an executive director, but right now we do not have an executive director, and the board of directors is searching for a nominee to replace the

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executive director.
Q. Am I wrong in thinking that you have an acting executive director? I thought I saw a reference in the papers that have come before me.
A. Stuart Tooredman serves as the chairperson of the WSO board of directors, and has been also appointed to serve as the interim executive director of the office.
Q. Does that mean that you are then, in terms of executive hierarchy, accountable to Mr. Tooredman?
A. Yes, sir, I meet with Mr. Tooredman regularly on a regular basis.
Q. I know you are speaking to me because I'm asking you questions, but try and project your voice out so that everybody in the court can hear. I see, all right.
And are there other executive officials at, say, approximately at your level?
A. Yes, sir, there is someone who holds a light title, what we call the support services division of the office.
THE COURT: All right, Mr. Synnestvedt, I apologize for intruding. I just wanted to get a little more sense of structure here.
MR. SYNNESTVEDT: No intrusion, sir. Thank you.
BY MR. SYNNESTVEDT:

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Q. I ask the reporter to mark a document as Plaintiff's Exhibit 1. I hand you Plaintiff's Exhibit 1, and ask if you can identify it?

A. Yes, sir, this is my deposition that I signed --

Q. Excuse me, your declaration.

A. My declaration that I signed on November 27th, 1990.

MR. SYNNESTVEDT: Your Honor, you already have a copy in the papers that we filed.

THE COURT: Yes.

MR. SYNNESTVEDT: Mr. Moorhead has a copy.

BY MR. SYNNESTVEDT:

Q. Mr. Hollahan, are the statements made in the declaration true, to the best of your knowledge, information and belief?

A. Yes, sir, they are.

MR. SYNNESTVEDT: Your Honor, I want to now introduce a copy of the Basic Text. I have only two copies. I'd like to have one for the Court and retain one for myself. I'm sure Mr. Moorhead has plenty of copies.

THE COURT: Let's make sure that he does.

MR. SYNNESTVEDT: Do you have copies of the Basic Text?

MR. MOORHEAD: I've never purchased the Fifth

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Edition of the Basic Text, Your Honor.

MR. SYNNESTVEDT: We'll supply Mr. Moorhead with a copy, Your Honor.

THE COURT: All right, you don't have one that's now available to give him?

MR. SYNNESTVEDT: I'll give him my copy, Your Honor. I'm marking this as Plaintiff's 2.

BY MR. SYNNESTVEDT:

Q. I'll ask the witness to identify it as the Basic Text of Narcotics Anonymous.

A. Yes, this is the Basic Text of Narcotics Anonymous known as the Fifth Edition.

Q. Is that the most recent edition?

A. Yes, it is.

Q. What is the price of the authorized Basic Text?

A. $8.

Q. Will you briefly describe the contents of the Basic Text for us?

A. The Basic Text is divided into two books. Book one consists of the sharing of experience through a unified voice of different subjects important to the members of Narcotics Anonymous. There are descriptions, for instance, of who is an addict. There are descriptions -- chapters based on our 12 steps with brief essays. There is also a chapter about our 12 traditions with brief

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essays. And there's, I believe, a total of ten chapters in book one.

Book one speaks through unified voice, hopefully, to new members to have them understand a bit of what they are going through, what they will go through, and the fact that we understand as one addict to another.

The stories in book two of the Basic Text are the personal experiences of members that describe the individual situations that members went through, the feelings they had when they were using, the despair they felt, what happened and what brought them to recovery, and what their experience has been since they've been in recovery.

Q. What is the approximate per year sales of the Basic Text?

A. We sell approximately 330,000 copies of the Basic Text.

Q. Where do the proceeds --

THE COURT: Not annually?

THE WITNESS: Yes, sir.

BY MR. SYNNESTVEDT:

Q. Where do the proceeds of the sale from the approved literature, including the Basic Text, go?

A. All the income received from the Basic Text is then

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put back into the operations of the office. Certainly, the income provides for future printings and future commitments to printing, more Basic Texts and more literature, and some of the other things that we produce.

It also allows us to provide group starter kits to new groups across the world. It also helps us provide income to help us translate our literature into other languages. It also provides the income for all the rest of the operations of the office, including the employment of each one of the people that work at the World Service Office.

The income from the Basic Text supplies approximately 90 percent of our operating costs in serving the Fellowship in a variety of ways through our other services.

Q. You mentioned that the book before you, as Exhibit Two, is the Fifth Edition.

Has the Basic Text been revised from time-to-time?

A. It's been revised a number of times. In the different revisions of the Basic Text, some of them were quite small. Some of the other revisions were quite significant.

We've revised -- I believe there's been six

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editions, including the first, second, third, third revised, fourth and fifth edition of Basic Text.

Q. Was each of these changes made with the review and approval of the World Service Conference?

A. Yes, it was.

Q. Is the Basic Text the subject of any U.S. copyright registration?

A. Yes, sir, it is.

MR. SYNNESTVEDT: I mark as Plaintiff's Exhibit three a group of six copyright registrations, and ask the witness if he can identify them.

THE WITNESS: Yes, these are the copyright registrations of the Basic Text.

Q. Are they the copyright registrations that are attached to the complaint in these proceedings?

A. Yes, they are.

Q. Is Narcotics Anonymous a registered trademark of World Service Office?

A. Yes, sir, it is.

Q. Is Narcotics Anonymous a registered servicemark of World Service Office?

A. Yes, sir, it is.

MR. SYNNESTVEDT: I'm marking as Plaintiff's Exhibit 4 a trademark registration, and I hand it to the witness being Trademark Registration Number 1,476,774,

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and I ask if you can identify it?

THE WITNESS: Yes, sir, this is the registration of the words "Narcotics Anonymous" as a trademark and servicemark of the World Service Office, Incorporated.

BY MR. SYNNESTVEDT:

Q. And is that a copy of the registration that's attached to the complaint in these proceedings?

A. Yes, sir, it is.

Q. Is the mark Narcotics Anonymous used on the literature of the Fellowship including the Basic Text?

A. Yes, sir.

Q. How did you first learn about defendant's activities, which are alleged in the complaint, to be infringements of the World Service Office copyrights and trademark and servicemark registration?

A. We first received communications from different locations from around the Fellowship that an illegal book, consisting of Book One of the Basic Text, was being produced and distributed. This was in late May, in early June. We received our --

Q. Of what year?

A. Of 1990.

Q. Excuse me, go ahead.

A. We received our first copy at the office in the first week of June.

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Q. Was a copy of this version of the Basic Text examined at World Service Office?

A. Yes, sir, it was.

Q. Who examined it?

A. I did.

Q. Did anybody else examine it?

A. There were members of my staff that helped me, as well as Stu Tooredman.

Q. The Mr. Tooredman that you already testified about?

A. Yes, sir, it is.

Q. What did you determine from the examination of this book?

A. We determined that this was a duplication of the Third Edition revised, the copyrighted Basic Text, with also the inclusion of language that had appeared in the Second Edition of the copyright or Basic Text.

Q. At this time, did the World Service Office know the source of this book?

A. We had some suspicions, and we did further find out later on that month from individuals who were distributing it.

Q. When did World Service Office first learn that the defendant, David Moorhead, was making and distributing these books?

A. Later on in the month of June 1990.

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Q. By what means did you learn this fact?
A. Through direct communication in a telephone call between himself and Stuart Tooredman with myself in the room.

MR. SYNNESTVEDT: I'm marking a document as Plaintiff's Exhibit 5, and I'll hand it to the witness and ask if he can identify it.

THE WITNESS: Yes, sir, I can. This is a letter from David Moorhead that was part of a larger package of information that was distributed to various sources throughout the Fellowship.

In this letter, I believe in the last few paragraphs you will see that he openly admits distributing the production of the Basic Text.

BY MR. SYNNESTVEDT:
Q. What connects this open letter, Exhibit 5, with Mr. Moorhead?
A. At the bottom, the letter is signed, "With great sadness, Grateful Dave." Greatful Dave is a name that is used by Dave Moorhead, and he commonly refers to himself as Grateful Dave.

THE COURT: Excuse me, are you now referring to a document that is annexed to some of the files and pleadings?

MR. SYNNESTVEDT: Yes, Your Honor. I will hand

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you a copy.

MR. FIELDS: Your Honor, that was an exhibit, I believe, in the Tooredman declaration, also.

THE COURT: Exhibit A of the Tooredman declaration, a five-page document titled Comments of Service in N.A.; is that right?

MR. SYNNESTVEDT: Yes, sir, Your Honor.

BY MR. SYNNESTVEDT:

Q. Mr. Hollahan, I direct your attention to the last four paragraphs of Exhibit 5. I ask if the address and phone number given there are those of Mr. Moorhead?

A. Yes, they are. I have sent both communications by mail to the street address and also personally called him at this number.

Q. Was this open letter, Exhibit five, the first written confirmation that you had of the World Service Office that Mr. Moorhead was the author of the books that were disturbing you?

A. Yes, sir, this was the first time that we received something by which he openly admitted in writing that he was part of the distributing and production of the illegal text.

Q. Did World Service Office do anything after the receipt of the open letter with relation to the contents of it?

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A. Well, I believe the first thing that we did is we began to talk about it among the various boards and committees, including the board of directors of the office and the board of trustees.

THE COURT: Excuse me, maybe I missed something, but I don't seem to know when this document, Plaintiff's Exhibit 5, came to the attention of you, Mr. Hollahan.

THE WITNESS: I don't have the exact date with me, Your Honor. I would have that information back at the office.

BY MR. SYNNESTVEDT:

Q. Can you approximate for me, please?

A. Sometime in late June, early July.

Q. Of 1990?

A. 1990, yes.

THE COURT: A copy came to the World Service Office?

THE WITNESS: A copy was sent to us by a member who received it directly from Mr. Moorhead.

BY MR. SYNNESTVEDT:

Q. Directing your attention again to the last three paragraphs of this letter, Exhibit 5, is there an indication there of the number of copies of the infringing text that Mr. Moorhead had produced?

A. Yes. In the third paragraph on the bottom of page

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five, there is a sentence that states, "I have produced and distributed 7,000 of these books at the behest of my home group."

In the next paragraph, which is the second to the last paragraph, he states again that "The current plans are to produce 50,000 Basic Texts and make them available to groups for 50 cents a book."

Q. Were there approaches made by World Service Office to David Moorhead with respect to this book?

A. Yes, there were.

Q. Would you tell us about those, please?

A. Stuart Tooredman, on a phone call that I was present during, approached Dave and they talked about Dave coming out to a board of directors meeting and presenting his thoughts and ideas and reasons behind producing this Basic Text to the board of directors, and then discussing it.

At the time, Mr. Tooredman was also in conversation with the chairperson of the board of trustees, and after discussing that with him, they offered an invitation to Mr. Moorhead to appear in Arlington, Virginia in the middle of July at a forum that would be open to the Fellowship to discuss his concerns and the production of the Basic Text.

Q. Were there to be board members at the Arlington

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meeting?
A. Yes, sir.
Q. Did you and Mr. Tooredman take any position with respect to Mr. Moorhead's reproduction of the Basic Text?
A. I think Mr. Tooredman, during that conversation, made it abundantly clear that he believed that Dave was in violation of the copyright laws of the U.S.
Q. What was Mr. Moorhead's response?
A. Mr. Moorhead's response was that he didn't believe that to be so.
THE COURT: This was when? I'm sorry.
THE WITNESS: This was in late June, early July, in a phone call between Mr. Tooredman and Mr. Moorhead.
THE COURT: Were you on the phone?
THE WITNESS: Yes, sir, I was present in the room. It was on a speaker phone.
BY MR. SYNNESTVEDT:
Q. Now, let's come back to the Arlington meeting that you referred to.
Did that meeting, in fact, take place?
A. Yes, sir.
Q. Did Mr. Moorhead attend?
A. No, he did not.
Q. Did you personally ever speak with defendant

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Moorhead regarding his infringing activities?
A. Yes, I spoke to him on or about September 14th, 1990.
Q. By telephone or in person?
A. By telephone.
Q. What did Mr. Moorhead tell you during this conversation?
A. Well, he discussed the fact that he planned to produce -- or it was in the works, the plans to produce 50,000 more copies of the Basic Text, and that there were also plans to reproduce the informational pamphlets as well.

The other part of that conversation consisted of my appearance at a Fellowship workshop in Miami the next weekend.
Q. Would you tell us about that appearance, please?
A. Yes, sir. On Saturday, I was invited to appear at a local Fellowship activity to discuss the issue of the Basic Text and some of the issues --

THE COURT: When you say a Saturday, could you perhaps supply a date?

THE WITNESS: I believe that would be Saturday, September 22nd, Your Honor.

BY MR. SYNNESTVEDT:
Q. 1990?

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A. 1990. Both Mr. Moorhead and I discussed the issue. I discussed the position of the World Service Office concerning the Basic Text that Mr. Moorhead was producing and distributing. Mr. Moorhead also addressed the assembled group and discussed his reasons and so forth.

Q. Let's come back to the telephone conversations you were telling us about.

What did you tell defendant Moorhead?

A. I told Mr. Moorhead that I believe that the way he was going about distributing and producing the Basic Text was wrong.

Q. How did he respond to your arguments?

A. He responded that he did not believe that to be true.

Q. Did Mr. Moorhead at the meeting that you referred to in Florida that you attended and Mr. Moorhead attended, did he give you a copy of the text that he was producing and distributing?

A. On the following day, on Sunday, I believe September 23rd, I appeared at a local workshop in South Miami, Florida. I was there to provide information about the current activities of the World Service Office, and described the activities of the World Service Office to the members there.

It was at that point prior to my addressing the

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body that Mr. Moorhead walked up to me and handed me a brown paper bag containing a copy of the illegal Basic Text.

Q. Did he make any remark when he did that?

A. He said, "This is hot off the press."

MR. SYNNESTVEDT: I've marked as Plaintiff's Exhibit 6 a copy of the booklet, and I'd like to hand it to the witness and ask if he can identify it. Your Honor, it's Exhibit B to the Hollahan declaration.

THE COURT: I'm sorry?

MR. SYNNESTVEDT: Exhibit B to the Hollahan declaration, Your Honor.

THE WITNESS: Yes, this is the book that Mr. Moorhead handed me.

BY MR. SYNNESTVEDT:

Q. Have you had an opportunity to compare this copy with the authorized text?

A. Yes, sir, I have.

Q. What did you find from your comparison?

A. I found that this was a reproduction of the third edition revised of the copyrighted Basic Text of NA, with additional language from the second edition of the Basic Text included.

Q. Did you have an opportunity to examine any additional copies of Mr. Moorhead's texts?

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A. Yes, sir. We received a number of different copies of the text that Mr. Moorhead was distributing.

THE COURT: Excuse me, you said this is exhibit B?

MR. FIELDS: I'm sorry, that is Exhibit A. My mistake.

MR. SYNNESTVEDT: I'm now handing the witness Exhibit B, Your Honor. I'm sorry for the confusion. I'll mark this as Exhibit 6.

BY MR. SYNNESTVEDT:

Q. I hand you Exhibit 6, and ask you if you can identify it?

A. Yes, this is a copy of the cover that appeared on a book that was received at the office on June 7th, 1990. I believe it was one of the earlier printings of the Basic Text by Mr. Moorhead.

Q. I direct your attention to the circle in the middle of the page with the words "Fellowship Approved" and F.L.C. Do the letters F.L.C. stand for anything or mean anything to you, Mr. Hollahan?

A. It can easily be construed to mean Fellowship Literature Committee, which could easily be confused with the World Service Conference Literature Committee, which is actually responsible for the development of Narcotics Anonymous literature.

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Q. Now, I believe you testified that you have a personal responsibility with respect to the work of this literature committee?
A. Yes, sir, I oversee that department and all the staff assigned to that department. It is also my ultimate responsibility to see that the activities of the literature committee are coordinated, that communications are sent to the committee, and the committee is provided with the resources that are needed to do the work.
Q. Has Mr. Moorhead ever submitted a work for approval of the committee?
A. No, sir, he has not.
Q. Are any of the infringing books Fellowship approved?
A. No, sir, they are not currently approved by the Fellowship. The Fifth Edition of the Basic Text is the one that is currently distributed by the World Service Office for the Fellowship.
Q. Were additional steps taken by World Service Office to attempt to get Mr. Moorhead to cease his infringing activities?
A. Yes, sir. We again talked with Mr. Moorhead the end of September. We also made attempts to communicate to various other individuals known to be involved in the production and distribution of a like book, to come to

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the World Service Office for a joint meeting of the boards being held the first weekend in October.

The other two individuals that we had invited declined the invitation. Mr. Moorhead accepted.

Q. Did you pay Mr. Moorhead's expenses to attend this meeting?

A. Yes, we did. We paid Mr. Moorhead's expenses, and also the expenses of a personal representative and an assistant to his personal representative.

Q. Did Mr. Moorhead refund the money to you at the time of the meeting?

A. Yes, sir, he did.

Q. How about the assistants, did they refund the money?

A. No, sir.

THE COURT: This was an October meeting?

THE WITNESS: Yes, sir.

THE COURT: Was this in California?

THE WITNESS: Yes, sir, it was at our office in Van Nuys.

BY MR. SYNNESTVEDT:

Q. Would you tell us in a few words the substance of the arguments made at those meetings with Mr. Moorhead present?

A. There was a great deal of discussion about the issues that Mr. Moorhead felt were part of a general

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concern, both his and other members, and was one of the primary motivating factors of why he was producing and distributing the Basic Text.

He had time to address both boards. We met for approximately four hours with all members present, and Mr. Moorhead along with our attorney in California.

THE COURT: Excuse me, Mr. Hollahan, when you refer to both boards, there is the board of the World Services Organization; is that correct?

THE WITNESS: Yes, sir.

THE COURT: One board. And the other board is the board of --

THE WITNESS: Trustees.

THE COURT: Trustees of what, the conference?

THE WITNESS: It's actually the Board of Trustees is one of the service arms I described earlier. That is part of the conference, and actually does a great deal of the work assigned to the conference during the year.

THE COURT: I see.

BY MR. SYNNESTVEDT:

Q. Was the position taken that if Mr. Moorhead did not voluntarily stop, that it would be necessary for the Fellowship to bring suit against him?

A. Yes, we discussed that. We also discussed

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alternatives to taking or proceeding with a lawsuit, and trying vigorously to get Mr. Moorhead to come to an agreement with us without having to go through legal proceedings.

Q. What was Mr. Moorhead's response?

A. Well, after the general meeting, there was appointed a small group who then met with Mr. Moorhead and his personal representative and our attorney, and tried for another hour and-a-half to hammer out an agreement.

Part of the agreement centered on giving Mr. Moorhead enough time to seek competent legal counsel. There was a 30-day provision that was added to the preliminary agreement.

What we tried to do is just get him to stop. We would agree to stop all legal proceedings until he had adequate time to seek legal counsel, and without seeking a preliminary or restraining order with the Court.

Mr. Moorhead on Saturday seemed to be agreeable with that in general, and overnight he was given the opportunity to think about it and come back the next day to sign the papers. He came back the next day and refused to sign the papers.

Q. Did Mr. Moorhead indicate how he was financially supporting his infringing activities?

A. Mr. Moorhead indicated that his initial activities

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were supported by his social security check.
Q. Now, you say the agreement that was proposed was never entered into; is that correct?
A. That's true.
Q. Were there any additional efforts made to persuade Mr. Moorhead to cease his activities?
A. There were additional efforts made at a workshop -- I believe it was the first weekend of November -- at which Mr. Moorhead appeared, and members of the Fellowship who were gathered for the workshop had the opportunity to address the issue, listen to Mr. Moorhead, listen to the position of the World Service Office. He was offered again the opportunity to sign an agreement.
Q. Was any agreement ever reached with Mr. Moorhead?
A. No, sir.
Q. To the best of your knowledge, is Mr. Moorhead still selling the infringing text?
A. To the best of my knowledge, in certain communications, it would be -- it would lead me to believe that, yes, he is.
MR. SYNNESTVEDT: I'm marking as Plaintiff's Exhibit 7 a document attached to the Scott Fields' declaration, Your Honor, which we filed on Monday.
THE COURT: Yes.
MR. MOORHEAD: Your Honor, I kind of feel

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riveted in the chair here by my ignorance of how to proceed, whether I have a right to object to any particular line of questioning or the introduction of any evidence.

THE COURT: Yes.

MR. MOORHEAD: Do I have that right, Your Honor?

THE COURT: Surely.

MR. MOORHEAD: What would be the protocol for me to approach you to do that?

THE COURT: Well, at the moment Mr. Synnestvedt, he's asking the witness to identify something. Mr. Synnestvedt is not, as I understand it -- has not asked that anything be admitted into evidence yet. We have a variety of exhibits.

MR. SYNNESTVEDT: I'm proposing to do that at the end, Your Honor.

THE COURT: I assumed that was the case. And if your concern -- if your concern is with the admission of documents into evidence, then an appropriate time to object would be at the point with which Mr. Synnestvedt offers the documents. But if you are objecting to particular questions that are being put to a witness, whether about a document or otherwise, then you make that objection at the time the question is put.

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MR. MOORHEAD: I suppose at this point that it would be appropriate rather to expedite the testimony that's already been given to say that I would like to reserve the right to object in part or in full to the evidence and the testimony that Mr. Hollahan has been presenting here today.

THE COURT: Well, you really ought to make your objections contemporaneously with the questions that are being put; otherwise, it gets to be a little difficult, sort of retrospectively, to knock things out. I don't say it's impossible, but if there's something now that Mr. Synnestvedt is asking Mr. Hollahan about that you think is an inappropriate line of inquiry, then you better tell me now.

MR. MOORHEAD: Yes, sir, Your Honor. The document that he is putting in front of you for your consideration, an averment by Scott J. Fields as to the answering machine message on my telephone. I fail to see how that particular thing has any relevance here bearing to the proceedings.

THE COURT: Well, I don't yet know myself. I'm not clear what Mr. Hollahan knows about that, but I'll let Mr. Synnestvedt ask his question and we'll see what the question is. So far I think he's just -- he's just referred to a document. I haven't heard any question.

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Why don't you go ahead and ask the question, Mr. Synnestvedt?

BY MR. SYNNESTVEDT:

Q. I hand you Exhibit 7, and ask if you can identify it?

A. Yes. This was the message on the answering machine when I called Dave Moorhead.

THE COURT: Now, wait a minute. Mr. Synnestvedt, maybe I'm mistaken, but --

MR. SYNNESTVEDT: I presented it as a --

THE COURT: I thought the exhibit reference was to an affidavit or declaration by Mr. Fields?

MR. SYNNESTVEDT: Yes, Your Honor. I presented it as an exhibit to the declaration of Mr. Fields because I didn't know at the time that Mr. Hollahan had personal knowledge of it himself.

THE COURT: Personal knowledge of this exhibit?

MR. SYNNESTVEDT: No, personal knowledge of the message on the answering machine.

THE COURT: I don't see how Mr. Fields' declaration -- if I recall, Mr. Fields was making a declaration about a phone call that he made.

MR. SYNNESTVEDT: Yes, the message on the answering machine is a recorded message and is repeated for anybody that calls, Your Honor.

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THE COURT: It may be that this witness telephoned Mr. Moorhead and got some answer, but I don't see the fact that Mr. Fields, if it be the fact, which I assume it is if Mr. Fields made a declaration -- but the fact that Mr. Fields made a phone call to Mr. Moorhead and got a response on the tape doesn't say anything to what Mr. Hollahan's experience is.

MR. SYNNESTVEDT: At the time I was preparing the case, I did not know that Mr. Hollahan had personal knowledge of the phone message recorded on Mr. Moorhead's machine, and I now know that, and I'll have Mr. Hollahan say that out of his own testimony.

THE COURT: This exhibit has nothing to do with Mr. Hollahan; is that correct?

MR. SYNNESTVEDT: That's correct.

THE COURT: I suggest that this be withdrawn for the time being.

BY MR. SYNNESTVEDT:

Q. Mr. Hollahan, did you yourself call the phone number of David Moorhead?

A. Yes, sir, I did.

Q. Did you hear in the recorded message --

THE COURT: When? Can we identify in some way?

THE WITNESS: It was the same day that Mr. Fields had called.

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THE COURT: What day would that be? We have no testimony about Mr. Fields. We have withdrawn the exhibit.

THE WITNESS: I don't remember the exact day, Your Honor. It was in towards the middle of December.

BY MR. SYNNESTVEDT:

Q. And did you reach an answering machine at Mr. Moorhead's telephone number?

A. Yes, I did.

Q. And what was the message, can you tell us in a few words?

A. "Happy holidays." It went somewhat like this.

MR. MOORHEAD: Your Honor, I must object to this. He has just had an opportunity to read that particular piece of information that was given to him and --

THE COURT: I take it you're putting aside the piece of paper. You'll be asked to give testimony with respect to what you remember hearing.

THE WITNESS: Yes, sir. And that's exactly what I'm doing.

THE COURT: All right.

THE WITNESS: To paraphrase it, "I'm so blue about the baby blue. The World Service Office is blue because they are going to sue, and if they lose, I own

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it. God bless you. Keep coming back."
BY MR. SYNNESTVEDT:
Q. What did you understand from the words, "keep coming back"?
THE COURT: I don't think this witness' testimony as to what he understood that to mean is going to be helpful to me.
MR. SYNNESTVEDT: Your Honor, I think it has a bearing on the testimony of this witness, that he had means of establishing that Mr. Moorhead's infringing activities were continuing.
THE COURT: I'll have to ask for there to be silence in the courtroom, please.
MR. MOORHEAD: Could I have Mr. Synnestvedt --
THE COURT: I beg your pardon?
MR. MOORHEAD: Could I have Mr. Synnestvedt repeat what he said?
THE COURT: We'll ask the reporter. The reporter will repeat it.
(Whereupon, the court reporter read back the pending question.)
THE COURT: Well, Mr. Synnestvedt, with respect, I simply don't get that.
MR. SYNNESTVEDT: All right, then, I'll move on, Your Honor.

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THE COURT: I mean it's susceptible to any -- I suppose a wide variety of constructions, the simplest being, call again.

BY MR. SYNNESTVEDT:

Q. I hand the witness a document and ask if he can identify it. I've marked it Exhibit 8.

A. Yes, sir, this is the reproduction of a letter that was received on our fax machine on December 7th, approximately 2:00 in the afternoon.

Q. Who is the letter from?

A. Well, the letter is not signed, but if you look in the second to the last paragraph, there is a sentence in there that certainly leads me to believe that this came from Mr. Moorhead.

Q. Would you read that sentence, please?

A. It states, "If WSO is not successful in their pursuit of this case under these particular and peculiar circumstances, that would mean that I, David Moorhead, will become the owner of the copyrights and trademarks in question since there are no other defendants named."

MR. MOORHEAD: Your Honor, I fail to see what relevancy this has to the proceedings. It may become relevant at some other point, I don't know.

THE COURT: Well, the document has not been offered in evidence.

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MR. SYNNESTVEDT: Do you have a copy before you, Your Honor?

THE COURT: I'm trying to -- I know it's an exhibit --

MR. SYNNESTVEDT: I have a copy for the Court.

THE COURT: Are you offering this into evidence?

MR. SYNNESTVEDT: I offer it into evidence, Your Honor.

THE COURT: Your objection, Mr. Moorhead, is that this is not relevant?

MR. MOORHEAD: I fail to see under the complaint that has been lodged against me, and the matter that's here before us today, how this letter can be relevant to any of these proceedings. I am assuming that there is something that Mr. Synnestvedt is trying to do with these pieces of information that may or may not become apparent to this at some point. I'm willing to proceed, if it pleases the Court, to receive this thing. I do not mean to be dilatory at all, Your Honor.

THE COURT: I'm not suggesting that you're dilatory. I asked Mr. Synnestvedt if you were offering this into evidence so that we could resolve right now, if we could, the question of whether this is a relevant document.

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If we assume for purposes of discussion that this document was produced by you, sir, that being a document which Mr. Hollahan has said that he received at the WSO offices, then, as I say, if we assume that it is a communication from you or an expression by you, then I think it seems to me relevant to know what your attitude was about litigation which was charging you with infringement of WSO's interests in the materials which are the subject of this dispute.

MR. MOORHEAD: I'll withdraw my objection, Your Honor.

THE COURT: All right. I will admit it.

MR. SYNNESTVEDT: At this point, I'd like to offer the other exhibits, exhibits one through seven, Your Honor.

THE COURT: All right. Now, Mr. Moorhead, I think you're acquainted with the other exhibits. Do you have objections to any one of them?

MR. MOORHEAD: I'm not quite sure exactly what exhibits one through seven are. If they came in the body of the legal package that I got -- there's nothing in there that I would object to. If, however, there are other items, then --

THE COURT: Well, Mr. Moorhead, let's try to focus on them. I believe, according to my notes,

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Plaintiff's Exhibit one was Mr. Hollahan's declaration. That is to say that was his written statement on which, of course, he has now enlarged in testimony.

MR. MOORHEAD: Not a problem, sir.

THE COURT: Plaintiff's Exhibit 2 was the -- has been identified as the Fifth Edition of the Basic Text.

MR. MOORHEAD: Not a problem, sir.

THE COURT: Plaintiff's Exhibit 3 is a list of copyright registrations of the six editions which the plaintiff alleges --

MR. MOORHEAD: Not a problem, Your Honor.

THE COURT: Plaintiff's Exhibit 4 is apparently a notice of Trademark Registration 1,476,774.

THE WITNESS: Not a problem, Your Honor.

THE COURT: Plaintiff's Exhibit 5 is a document captioned, "Comments on service in Narcotics Anonymous."

MR. MOORHEAD: Not a problem, Your Honor.

THE COURT: Then Plaintiff's Exhibit 6 --

MR. SYNNESTVEDT: That's the alternative cover, Your Honor.

THE COURT: Yes, that is the copy of the cover of the text as received, according to Mr. Hollahan, at the WSO offices on June 7th, 1990.

MR. MOORHEAD: Not a problem, Your Honor.

THE COURT: That's the same document that I

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believe was Exhibit Number B to Mr. Hollahan's declaration.

And I think Plaintiff's Exhibit 7 was withdrawn, and Plaintiff's Exhibit 8 is the letter that we've just discussed that I admitted.

Was Exhibit A to Mr. Hollahan's declaration -- that is not an exhibit; is that correct?

MR. SYNNESTVEDT: Yes, Your Honor. Let's call it 6A. I offer 6A into evidence, too, Your Honor. I had a duplicate number 6.

THE COURT: 6A, that was the document that appears by xerox as Exhibit A of the Hollahan declaration?

MR. SYNNESTVEDT: Yes, sir.

THE COURT: Has it been identified by Mr. Hollahan?

MR. SYNNESTVEDT: Yes, it has, Your Honor. It's the little blue book sitting on the witness table.

THE COURT: Is there any objection to that?

MR. MOORHEAD: No, sir.

THE COURT: All right, the exhibits then are admitted.

BY MR. SYNNESTVEDT:

Q. Mr. Hollahan, did Mr. Moorhead's infringing activities have any impact on the Fellowship?

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A. I believe that there has been a great deal of impact on the Fellowship.

Q. Would you tell us what that impact is, please?

A. The impact probably goes at the very core of what the Fellowship is about and some of our various principles; one being the principle of unity.

For the fact that a number of years we as a Fellowship have accepted the decisions of the World Service Conference and the representatives gathered at that annual meeting as being the decisions that we as a Fellowship make concerning our literature.

The production by an individual member of a Basic Text that is then constructed in a way to have a personal incantation to it challenges that principle. It simply means that if this were allowed to continue, that any member of Narcotics Anonymous could write a Basic Text according to what their individual beliefs were, and the Fellowship would fail to achieve one of its primary goals, and that is a unified message as a Fellowship to both new members and to the general public about what NA is, what Narcotics Anonymous isn't, what FNA consists of.

The other part of the damage, I believe, could happen, and very possibly has happened already, and that concerns the income from the Basic Text that is used to

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provide other services. Part of a loss of income will no longer allow us to do things like translate our literature into other languages.

MR. MOORHEAD: Your Honor, I don't know if it's proper, sir, to object at this point. That's unsubstantiated, and there's no harm, no data, none whatsoever that Mr. Hollahan --

THE COURT: Well, Mr. Moorhead --

MR. MOORHEAD: I'll have a chance?

THE COURT: You'll have an opportunity to cross-examine this witness --

MR. MOORHEAD: All right, sir. I'll just sit back.

THE COURT: -- when the direct testimony is concluded.

MR. MOORHEAD: I'll sit back then. Thank you, sir.

THE WITNESS: Since all of the services that are provided by the World Service Office in support of both the Conference and the Fellowship as a whole are dependent upon the income of our main book, the Narcotics Anonymous Basic Text, all those services are subsequently threatened, as well, in whether or not we will be able to communicate and provide a message to the addicts who still suffer who may not be at our door yet to those

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newly forming groups in countries all over the world and even in the United States that need this support, the World Service Office and the services that it gives them.

It threatens us in a great deal to be unable to provide those services. As a non-profit organization, there are -- even with the income that we currently have, there are always things that are left undone. And there is always more work to do. And the very threatening of the World Service Office and the unity of our Fellowship, and the decline and services may mean that some people may die.

MR. SYNNESTVEDT: You may cross-examine.

THE COURT: You may want to begin your cross-examination, Mr. Moorhead. We ought to recess for lunch fairly soon. Maybe since we've been at it for quite awhile, why don't we do this? Why don't we recess for ten minutes and then resume and go on until 1 o'clock? If the cross-examination is going to take longer than that, then we'll continue it until after lunch.

(Recess was held at 12:27 p.m.)

(The Court resumed the proceedings at 12:45 p.m.)

THE COURT: Mr. Moorhead, you are entitled to

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cross-examine Mr. Hollahan. That means that you may ask him questions about what he has testified with respect to. That's, broadly stated, the area in which you can put your questions. So, go ahead.

CROSS-EXAMINATION

MR. MOORHEAD: I hope you will let me know if I tread on any procedural protocol that I'm unaware of.

THE COURT: I will. If they come to my attention. Mr. Synnestvedt may make objections.

MR. MOORHEAD: I would like to first state that I've been unable to afford to make copies of some of the supporting stuff that I have here. It's quite a problem just to get it altogether today.

I would like to ask Mr. Hollahan if he can identify a piece of paper here that was authored by him.

THE COURT: Offered by him?

MR. MOORHEAD: Authored by him.

THE COURT: You must give copies of anything that you're going to examine the witness on to Mr. Synnestvedt.

MR. SYNNESTVEDT: Perhaps I can look at it and let the examination continue, Your Honor.

MR. MOORHEAD: Your Honor, I offered to plaintiff's counsel the unrestricted opportunity to utilize any of this documentation or information today or

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at any other time that they might need to.

THE COURT: Fine. Well, that's very generous of you, but with respect to anything that -- in particular that you're going to make the focus of questioning, then you have the obligation to let the other side know what you're doing.

MR. SYNNESTVEDT: I have no objection to the examining of the witness about it. I would like to have a copy of that at a convenient time.

THE COURT: All right.

BY MR. MOORHEAD:

Q. Could you identify that document as coming from you, originating from you?

A. This is a memorandum that I was requested to write by the World Service Conference Literature Committee chairperson.

Q. Thank you. It is your authorship; am I right?

A. Yes, it is.

MR. MOORHEAD: All right, thank you.

Your Honor, must I leave it with the witness in case he needs to refresh his memory?

THE COURT: Well, if you're going to be asking him about things that are in the text, then it would be appropriate if you would let him see it. If you do not have a copy yourself, then you can stand next to him and

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identify what you are going to ask him about.
BY MR. MOORHEAD:
Q. Mr. Hollahan, in the first underlined section in there --
THE COURT: Excuse me, I think to keep -- so that the record will show that we know what we're talking about, we'll have to identify these pieces of paper. Suppose we call that Defendant's Exhibit number one. Hereafter, I'll ask you to number these things as they come along. Use D for defendant and X for exhibit.
BY MR. MOORHEAD:
Q. Mr. Hollahan, could you explain the statement that you've written in here, "The myths of NA literature need to be exposed and brought to light", please?
THE COURT: Excuse me. Before we begin to get into some textual exegesis, I would -- I think the record should tell us when this was that Mr. Hollahan prepared this memorandum.
MR. MOORHEAD: It was distributed, Your Honor --
THE COURT: You're not the witness. You may ask that question to Mr. Hollahan and then --
MR. MOORHEAD: Oh, boy, I am tripping all over myself here.
THE COURT: Mr. Hollahan, do you want to tell us when that was prepared by you?

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THE WITNESS: I believe, Your Honor, that this was prepared and given to the chairperson of the WLC Literature Committee in June of 1989.

BY MR. MOORHEAD:

Q. Again, I would like to ask you, please, if you could -- in very brief detail what you mean about the myths of NA literature?

A. My meaning to the statement simply meant that some of the ideas and thoughts and references that members were making to the creation of NA literature and the development of NA literature were not altogether correct.

Q. Thank you. Going to the next page. The circled section that says, "Using our skilled member special workers working with a committee, who make the basic decisions, only makes sense."

MR. SYNNESTVEDT: Excuse me, may I look over the witness' shoulder?

BY MR. MOORHEAD:

Q. "Writing by committee or in huge workshops doesn't. We need only to look at what currently exists."

I'm saying that to solicit a question, an answer to a question, is it not true that all of the literature that we have up until 1988 was, in fact, written and produced in large conferences and workshops?

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A. I wouldn't find that statement altogether true.
Q. Well, what part of it is true and what part is not?
A. I believe if you examine some of the pamphlets more carefully, you will find that they were written by different methods.
Q. Thank you.
The next line, it says, "Involving the Fellowship throughout this process is another myth that needs to be shattered." What do you mean by that?
A. Well, there's two opportunities that we have used the resources of the Fellowship in general to become involved in literature. My suggestion in this statement was that that wasn't altogether necessary.
Q. Thank you. The attached, which may, in fact, be attached to yours -- we have a memorandum for a staff team approach. Would you explain just briefly what a staff team or skilled special worker is?
A. Are you referring to this attachment?
Q. I am referring to a question. What is a special worker or staff team --
THE COURT: Well, Mr. Hollahan asked you whether you are talking about an attachment. I take it that the phrase you're using comes from some particular place in the piece of paper.
MR. MOORHEAD: Yes, sir, it was read in the

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previous things. It says, "Using our skilled member special workers." I'd like to have the witness tell us briefly what a skilled member special worker is, and then just referring --

THE COURT: Mr. Moorhead, I just want to be sure that the witness understands where the phrase is that you're pointing.

MR. MOORHEAD: Thank you. Could you answer the question?

THE COURT: Mr. Hollahan, do you know where the phrase is that's being referred to?

MR. MOORHEAD: It's in the circled section here in the document entitled to.

THE WITNESS: The phrase, "Using our skilled member special workers working with a committee was the suggestion of a method by which members of NA who are also employed as special workers by the World Service Office would be used working with the committee.

BY MR. MOORHEAD:

Q. The memorandum that is attached dated staff team approach, would you explain to us what a staff team is? Is that the same thing as a skilled special worker?

A. I do not have that memorandum.

Q. It would be this one.

A. That's not a part of it. I don't have that one.

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THE COURT: We're now talking about -- are we still talking about Defendant's Exhibit one or a memorandum --

MR. MOORHEAD: Sir, I'm sorry, but there are many, many documents that are confused. I didn't have copies. I tried to get them prepared as best as I possibly could today.

THE COURT: Mr. Moorhead, we just have to know for the record what piece of paper it is that Mr. Hollahan is being examined about, and whether he is responsible for the piece of paper. You established his responsibility for a memorandum which he says was prepared in June of 1989.

MR. MOORHEAD: This is dated, "Memorandum: Staff team approach, guide to service development, June 9th, 1989." Were you the author of that?

A. No, I wasn't.

Q. All right, thank you. I'm going to dispense with this line of questioning for the moment, Your Honor. Would it be fair to say that a staff team and special worker are people who are paid to work on our literature or other service materials by the World Service Office?

A. I wouldn't --

Q. Yes or no, please?

A. No.

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Q. You stated in your testimony earlier that, in your recanting to the Judge for his information, that there was a philosophy of Narcotics Anonymous.

Do you know what the definition of philosophy is?

A. I couldn't give you one off the top of my head necessarily.

Q. Would it be fair to say that based on minimally 37 years of experience, that we have a proven method of recovery?

A. I believe so, yes.

Q. Thank you. In your basic history of Narcotics Anonymous, you assert that Narcotics Anonymous was formed in 1953. Are you aware of any other Narcotics Anonymous that preexisted ours?

A. Yes, I am certainly aware of groups that called themselves Narcotics Anonymous prior to the 1953 group, that I had described in my testimony, that began in California, yes.

Q. Thank you.

I am prepared to submit documents in support of the line of questioning that I have. Perhaps if I can get a transcript or something which will let me get an idea of what it was that I'm trying to do, and maybe that's right and maybe that's not. I don't know.

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THE COURT: Mr: Moorhead, I don't think there's any way of providing you with an instant transcript. The reporter is a very hard working colleague. The production of a transcript is something that even for the ablest of people takes some time. It also is not automatically prepared. It is prepared at the request of the parties, but is a somewhat costly matter.

Now, how far we're going to go when you spoke of presenting a lot of documents to illustrate or somewhat clarify or annotate the line of questioning before we pursue matters very far, I'm going to have to find out how this line of questioning is material to the claims that are being made against you, and most particularly how they fall within the direct examination.

Up to now, you have been inquiring of Mr. Hollahan, as I understand it, about his very brief recital of history of Narcotics Anonymous. It was suggested to you by questions, but there's some antecedent history by you utilizing that banner.

But before we go very far in elaborately canvassing an earlier history, I would have to say to you that I don't know where that's going to be material.

MR. MOORHEAD: All right. Your Honor, if it pleases the Court, I'd like to state that there are six counts of different things that -- the basis for the

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motion for a Preliminary Injunction and Temporary Restraining Order. And it is, I believe, incumbent upon me to put forth in as brief a manner as possible things that would support a counter or an argument -- a sufficient argument to be in front of the Court which would cause Your Honor to deny such orders, temporary or otherwise.

THE COURT: Yes. Well, you will have to be --

MR. MOORHEAD: Perhaps, I don't mean to interrupt you. I should call myself as a witness and give other testimony to those --

THE COURT: Perhaps so. If you want to do that, that would follow after Mr. Synnestvedt has completed his presentation of evidence. So far as I know, Mr. Hollahan is the only witness he plans to call. But he may -- we have to abide the event on that. That's the only witness I know of at this point.

In thinking about the questions that you put to Mr. Hollahan on cross-examination, and more broadly in thinking about what presentation you would want to make when it becomes your turn to make one on behalf of the defense, whether through your own testimony or through the presentation of exhibits or other witnesses, I think you should have in mind that the central charge here is that you have been engaged in publication and

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distribution of materials that are copyrighted and materials that bear a caption and title which is itself the subject of a registered trademark. That is to say that you have been trading on the property rights of others, namely of WSO, as the holder of the copyright and the trademark in question.

Now, that's sort of the central complaint. It would be open to you to counter that claim to show that it's not properly copyrighted, or the material is not Narcotics Anonymous, is not the subject of a registered trademark. That would be one line of response.

Another would be to show that you have not been engaged in publication or distribution, and that such testimony as Mr. Hollahan has given, and such inferences as might be drawn from some of the exhibits suggesting was engaged in such distribution and publication, are inaccurate, misleading, false.

Beyond that, you could be a publisher and distributor of infringing materials and still, I suppose, try to make the claim -- try to deny would be a fairly common sense inference -- that the distribution of infringing materials causes no injury to WSO; at least the injury is not irreparable. Mr. Hollahan has given testimony to suggest the nature of that injury. He hasn't undertaken to qualify the dollar loss income.

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Nonetheless, I suppose a court would be within its authority to draw the inference that if somebody who is not entitled to publish a book publishes it and distributes it, that publication and distribution are likely to dilute the market of the authorized publisher.

Now, maybe what I've said is not exhaustive, but those are the main lines of issues to be developed, I think, in this case. And so you might want to have that in mind as you think about what further questions you want to put to Mr. Hollahan, and what defense case you might want to make.

It's now nearly quarter after one, which is later than I had said we would recess. I think we should all recess for lunch now, and this will give you an opportunity to put matters into some focus, Mr. Moorhead, because we really only have a very limited time, as I think you know.

I had hoped that we would be able to complete our work this morning, but when we come back -- that's not the case. When we come back this afternoon, I certainly want to be sure that we get matters into focus pretty quickly. All right?

MR. MOORHEAD: Thank you.

THE COURT: We will recess until 2:00.

(Luncheon recess was held at 1:15 p.m.)

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(The Court resumed the proceedings at 2:08 p.m.)

THE COURT: Mr. Moorhead, if you wish to continue with whatever cross-examination you may have for Mr. Hollahan.

MR. MOORHEAD: Yes, sir.

Your Honor, if I may ask a procedural question before I proceed. If, in expediting this thing for all of us, if I may ask him a few questions and dispense with the rest of the testimony for awhile and reserve the right to call him back at some future point. I have a number of people here that can answer very quickly the things that I -- I find myself in a very awkward position being unable to present things on my own or to have anyone else present them for me. Is that --

THE COURT: Well, you would be free to call Mr. Hollahan back as a witness in your own case. But the phase of cross-examination with respect to the matters that he's been asked about by Mr. Synnestvedt, that conventionally should be taken as a unit now.

If there are matters that Mr. Hollahan can be a useful witness on that relate to issues other than those that Mr. Synnestvedt has examined Mr. Hollahan on, then I say, he can be called as a witness by you. But the unit which relates to Mr. Synnestvedt's examination is one that has to be dealt with now.

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MR. MOORHEAD: All right, sir, I'll do my best. Thank you.

BY MR. MOORHEAD:

Q. Mr. Hollahan, in your sworn statement under penalty of perjury, you, in section seven, you state that --

THE COURT: Do you have your declaration in front of you?

THE WITNESS: Yes, sir.

BY MR. MOORHEAD:

Q. "F.L.C. is understood as Fellowship Literature Committee." Mr. Hollahan, in your ten and-a-half years with Narcotics Anonymous, has there ever been a branch of our service structure named the Fellowship Literature Committee?

A. The term Fellowship Literature Committee --

Q. Mr. Hollahan, I asked, yes or no, please?

THE COURT: Mr. Moorhead, I think that the witness is -- all right, if you want to answer yes or no and then expand on the answer.

THE WITNESS: Would you repeat the question, please?

BY MR. MOORHEAD:

Q. The question is, in your ten and-a-half years of Narcotics Anonymous, in all these service manuals that we have over here and all the ones that you are aware of,

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has there ever been a designation, official designation called Fellowship Literature Committee?

MR. SYNNESTVEDT: I object, Your Honor. The question refers to all these manuals we have over here, and I don't know what that encompasses.

MR. MOORHEAD: Your Honor, I think it's pertinent because Mr. Hollahan is intimately familiar with all of our service materials and manuals, and I think he knows the answer to that question, Your Honor.

THE COURT: Well, Mr. Moorhead, you may say you think he's intimately acquainted with all these matters. I don't know what documents are being referred to, and it simply is too open-ended. If you want to ask Mr. Hollahan whether some particular responsible entity -- I don't know who it is, the conference or WSO Board of Directors or somebody -- has had occasion to establish a thing called a Fellowship Literature Committee, maybe that's what you want to do. But let's not leave it in that openly textured way.

MR. MOORHEAD: Okay.

BY MR. MOORHEAD:

Q. Mr. Hollahan, to the best of your information and belief, are there any official designations or categories created by the official service structure of Narcotics Anonymous that would support any of the statements that

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you made pertaining to these particular items within the context of your sworn statement number seven?

THE COURT: That's a little bit too -- that's so vague that I don't know what it means, Mr. Moorhead.

MR. MOORHEAD: All right, sir.

THE COURT: You started out by inquiring about the existence of a Fellowship Literature --

BY MR. MOORHEAD:

Q. Mr. Hollahan, is there a Fellowship Literature Committee?

A. To the best of my understanding, yes, there has existed a Fellowship Literature Committee.

Q. What do you base that understanding on?

A. I base that understanding on personal experience and information that I've received from other members as well.

Q. Is it not true here that you state, "Within the Fellowship, F.L.C. is understood as Fellowship Literature Committee"? What do you mean by that?

A. I believe that some members commonly refer to the World Service Conference Literature Committee as the Fellowship Literature Committee.

Q. But is there any official name or title to this effect that -- your statement here infers, Mr. Hollahan, that with your supporting documentation Exhibit B covered

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that looks similar to this, that --

MR. SYNNESTVEDT: May I see that, please?

MR. MOORHEAD: Well, this is a different one than the one that was exhibited, but I don't have that.

MR. SYNNESTVEDT: Could we use the official exhibit, Your Honor, instead of this document, whatever it is? The exhibits are right there.

THE COURT: Mr. Moorhead --

MR. MOORHEAD: I'm just drawing Mr. Hollahan's attention to the cover that he submitted in his exhibits, and in his sworn statement he avers in his testimony that there is such a thing as the Fellowship Literature Committee, and that the Literature Committee -- that literature submitted to this committee is reviewed by the committee to carefully review and insure an accurate reflection of the message of the Fellowship.

Once the literature is reviewed -- what I'm trying to establish here is that there isn't a grain of truth in what Mr. Hollahan claims in this particular paragraph. And if I need to bring other people up here, I will do so.

THE COURT: You will have the opportunity to put on --

MR. MOORHEAD: I guess I'll have to withdraw this line of questioning and reserve the right to call

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him later. I'd like to call somebody else to the stand, if I possibly can.

THE COURT: All right.

MR. MOORHEAD: Thank you, sir. You are dismissed for right now.

MR. SYNNESTVEDT: I have a question on redirect, Your Honor.

THE COURT: All right, go ahead.

REDIRECT EXAMINATION

BY MR. SYNNESTVEDT:

Q. I direct your attention to the document marked for identification DX-1, and specifically to the under-linings, interlineations, marginal notations that are -- that appear there. Do you see those, Mr. Hollahan?

A. Yes, I do.

Q. Do you know who put those on there?

A. I don't know who put those on there.

Q. Did you put them on there?

A. No, I did not.

MR. SYNNESTVEDT: That's all I have, Your Honor.

MR. MOORHEAD: I fail to see what relevance that has.

BY THE COURT:

Q. Mr. Hollahan, just one or two very brief questions.

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As I understood your testimony, the origins of Narcotics Anonymous back in 1953 in California -- and I'm putting aside for the purposes of my question whatever antecedent -- chronologically antecedent movements towards a Narcotics Anonymous there may have been. But the movement which got under way in California in 1953, as I understood from your testimony, was by persons who were dissatisfied with Alcoholics Anonymous as a framework for their efforts; is that correct?

A. I think that their feeling was that a Fellowship should be developed specifically to deal with addicts.

Q. With addicts of -- that is to say with respect to narcotics as distinct from alcohol, correct?

A. Yes.

Q. Without meaning to draw you into any large scale philosophic discussion, can you tell me, was the general approach of Alcoholics Anonymous regarded as a model to be built upon, or was that general philosophic approach to the problems of addiction being in some sense repudiated or departed from?

A. I believe you would find, Your Honor, a very close resemblance to the approach that was previously used in Alcoholics Anonymous with some distinctions, especially in some of the adaptations to the steps in the traditions that were made; most notably the first step where

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Alcoholics Anonymous had specifically mentioned alcohol. It was Narcotics Anonymous who changed that focus unto the disease of addiction. So that was one of the main distinctions between what we adapted from the AA model and developed for ourselves. That was more appropriate to us.

THE COURT: I see. All right, thank you, Mr. Hollahan. You may step down, sir.

Now, Mr. Moorhead, we must inquire of Mr. Synnestvedt if he has further presentation to make. He has not yet addressed it.

MR. SYNNESTVEDT: I'd like to make the Tooredman declaration part of the record, Your Honor. We move that.

THE COURT: I assume you have no objection to that?

MR. MOORHEAD: No, sir.

THE COURT: Then the plaintiff has rested. Then the floor is yours, Mr. Moorhead. You may now put on such testimony as you wish.

MR. MOORHEAD: Do I take the stand now, is that what I do?

THE COURT: Before lunch you spoke about being a witness yourself. I got the feeling a few minutes ago that you were telling me that you hoped to have others on

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the stand, and perhaps I somehow thought that you thought that that may obviate you having to be a witness yourself. I don't know what your intention is on that.

MR. MOORHEAD: Well, I'm kind of flying by the seat of my pants, Your Honor.

I would like to call Mr. Sewell to the stand, if I could.

VICTOR HUGO SEWELL, JR., was duly sworn.

MR. SYNNESTVEDT: Your Honor, we were not notified of any appearance by Mr. Sewell.

MR. MOORHEAD: Your Honor, my recollection of our conference, I was not required to notify the opposing counsel of what responses or defenses that I would have to be doing --

THE COURT: I'm not sure that I did make such requirement. Did I, Mr. Synnestvedt?

MR. SYNNESTVEDT: No, Your Honor. It was implicit that we produce a paper of our witnesses, that he produce a paper with his witnesses.

THE COURT: Well, I'm not sure that it was. At all events, the time constraints made it a little hard, I think. Mr. Moorhead wasn't acquainted until presumably Monday to who you were going to produce and how you proposed to proceed. So I don't really think we can insist on Mr. Moorhead's telling us in advance who he

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would produce to be responsive to your case.

MR. SYNNESTVEDT: Very well, Your Honor.

THE COURT: If there's yet to be acute difficulties about looking in the direction of surprise, or issues are raised that it's going to be hard for you to be responding to, then we may have to continue this proceeding. Let's see how far we can go.

MR. MOORHEAD: Your Honor, I believe a perusal of the record of the conversation that your court reporter took will indicate the efficacy of that statement that I made. Should I proceed?

THE COURT: Yes, go ahead.

DIRECT EXAMINATION

BY MR. MOORHEAD:

Q. Mr. Sewell, would it be fair to say that -- how long have you been clean, that is without the use of any mind-altering substances?

THE COURT: Do we have this witness' address and some identification?

MR. MOORHEAD: No.

THE COURT: Can you tell us where you are from, sir?

THE WITNESS: Allquippa, Pennsylvania. I'll give the reporter my card. 490 Franklin Avenue, Allquippa, Pennsylvania, 16 and-a-half years.

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BY MR. MOORHEAD:

Q. So, to the best of your knowledge, could you state basically for the record here the participation and involvement that you have had with the literature development process, particularly the Narcotics Anonymous Basic Text? And, further, would you identify for the Court that you were the author of the original 160-page draft of that Basic Text?

THE COURT: Well, let's not have --

MR. MOORHEAD: Too many things?

THE COURT: Let's concentrate on having the witness do the testifying. You're doing what is called leading the witness. What you should be doing is trying to ask questions which are neutral so that the witness may not know what you want him or her to say.

MR. MOORHEAD: Thank you, sir.

BY MR. MOORHEAD:

Q. First, could you share with us your involvement?

A. Sure. I got clean in 1974. And I appreciated, I think, at the beginning how wonderful the dream could be if it were only true.

I was very active in the Fellowship in Georgia for the first three years, and I communicated with WSO on the west coast by mail and by telephone.

One question that kept coming up is who is

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working on our book and where are they. And that question drove me to the Seventh World Convention in San Francisco. I tried to be nice about it, but I kept asking my question. And I was eventually dragged into registration where I met most of World Services in five minutes.

They directed me to the chairman of the board and trustees, and he said nobody is working on our book anywhere. It took him about six hours to say that, but that sums it. I said, "Who can?" He said, "Anybody." I said, "You mean they haven't tried?" He said, "Well, there's been some efforts."

So a year later, I stayed in constant touch with him, sending him material that I wrote periodically, and we met in Louisiana and I gave him the balance of the photocopies. We went to the Eighth World Convention in Houston, Texas. And I gave -- there was another trustee in Houston, Bob V. We don't like to break the anonymity due to the threatening of a subpoena.

I showed him the material, and I guess the strength of that got me the attention of the board of trustees and the WSO. And about four or five months later, I was asked to write a letter to the Fellowship as a member of the WSO Literature Committee and the Board of Trustees Literature Committee. I was reluctant to do

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that because I didn't see anything in writing that said I should be writing such a letter, but I did. It was a pretty good letter. It went out all over the world.

A few months later, I was led to the World Lit. chair. That was in '79, the spring of '79. And so I sort of stood between two worlds. One, the world of the California old-timer NA, and also the world of the east coast newcomer that only wanted to help. And so I used my position as chair to write letters and gather input, and I used Dale Carnegie techniques to write real friendly responses like, yeah, yeah, this is great, send us more. And they did, and unbelievable amounts.

I finally started describing it in quantities of feet and pounds to where the west coast would get the idea. There was real input coming in. So we held a conference that following Wichita. We, you know, wrote some guidelines for ourselves, and that resulted in a booklet called the Handbook for NA Lit Committees, and that helped because then everybody had the game plan in hand for newsletters, for IP materials, for stories of Basic Text, for the Basic Text itself and everything. It was typeset and printed and it had a good cover.

Q. Mr. Sewell, is this a copy of that?

A. Yes.

Q. Thank you.

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A. And we were planning to raise funds to support it because the --

THE COURT: Just one moment. The witness has identified a document, but I think we will have to get some more documentation.

MR. MOORHEAD: An original copy of the original literature handbook --

THE COURT: We're going to let the witness do the testifying.

MR. MOORHEAD: I'm sorry.

THE WITNESS: Anyway, the --

THE COURT: If you would hold on just one moment.

MR. SYNNESTVEDT: I'm without a copy, Your Honor.

MR. MOORHEAD: I'd be happy to give him a copy of it, Your Honor.

THE COURT: When you introduce a document into the court proceeding, it is your obligation -- generally speaking your obligation to furnish a copy to defense counsel. If you do not have a copy, then you must provide counsel with time to examine the piece of paper and make sure whatever it is. It's appropriate to being in some sense antagonistic to Mr. Synnestvedt and Mr. Fields because they want to look at a document. If there

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were other pieces of paper in there that were not included in what you had in mind to show to a witness, hence counsel, then I think it's your obligation to make that separation.

MR. SYNNESTVEDT: Can I have a moment?

MR. MOORHEAD: With all due respect, Your Honor --

MR. SYNNESTVEDT: May I have a moment to go over this and confer?

THE COURT: Let Mr. Moorhead make his statement, and then, Mr. Synnestvedt, you'll have an opportunity to take a moment to consult.

MR. MOORHEAD: Your Honor, Mr. Hollahan indicated earlier today that I had used my social security check to help with printing of things. The facts are, sir, that -- what I'm trying to say here is, I don't have any money. There's no way for me to provide the copies and the documents and the filings and this and that. And I don't know if this is the proper time, but, you know, if plaintiff -- I don't know what the hell is going on, to be quite honest.

THE COURT: Mr. Moorhead, the remarks that I made a moment ago were directed to what seemed, from my point of observation, to be some resistance on your part to letting Mr. Synnestvedt and Mr. Fields look at what

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was in a loose-leaf notebook. I saw you pulling some documents away from them.

Now, maybe I misapprehended the situation. But I was just trying to explain to you the protocol here in court. We normally call for giving to opposing counsel the document which you propose to use.

And then I went on to say that if you don't have a copy to give to Mr. Synnestvedt and Mr. Fields, then you at least have to give them the opportunity to examine the document before we can proceed any further. That was all that I was trying to say. I'm sorry, Mr. Moorhead, if you had taken my comments in some larger sense. All that is going on in the courtroom is to try to proceed with fairness to both sides and without surprise, without proceeding as we spoke about two centuries ago, proceeding by what is called the supporting theory, proceeding by ambush, where one side didn't know what the other side was going to present, so what one got was not an inquiry into the truth, but an inquiry into the most manipulative and most in depth.

Now, Mr. Synnestvedt and Mr. Fields already feel a little handicapped because they did not have in advance of this hearing a listing from you of who you were going to call in the way of witnesses, and what kinds of materials you were going to offer. As you know, I said

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that I thought you should be allowed to proceed, notwithstanding that you haven't supplied that advanced information to Mr. Synnestvedt and Mr. Fields, although they have, in compliance with my directive, given you that information. I am just trying to at this point keep matters as equal as possible.

MR. MOORHEAD: I understand.

THE COURT: Now, Mr. Synnestvedt has asked for an opportunity to consult, I take it, with Mr. Hollahan.

MR. SYNNESTVEDT: Yes, Your Honor.

THE COURT: If you want to take a few minutes to talk to Mr. Hollahan, that's fine. We'll, I think, perhaps we should take a recess until quarter of 3. That will be about seven minutes from now.

MR. MOORHEAD: May I ask a procedural question before you go? Is it proper for me to interrupt the witness and ask him -- or any witness -- and ask him to clarify the statement or to --

THE COURT: Not by way of interruption. Usually one goes question by question. So that you can ask then for a further detail or whatever. If you ask the witness, as you have, for sort of a narrative, then I think it's appropriate to break in at a point when it's becoming more discursive and less illuminating with respect -- generally, we don't proceed narratively, but

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sometimes there are reasons to do that.

(Recess was held at 2:37 p.m.)

(The Court resumed the proceedings at 3:00 p.m.)

MR. SYNNESTVEDT: Your Honor, the document I examined during the recess is a 16-page brochure entitled, Handbook for Narcotics Anonymous Literature Committees. There's a copyright 1983 by the World Service Office, Inc., and I have no objection to presenting it to this witness.

THE COURT: All right.

BY MR. MOORHEAD:

Q. Mr. Sewell, if you would continue briefly your narrative for a minute or two, and then we'll get into more specific questions.

THE COURT: Could you, before just launching the witness again on the generalcy of narrative, could you focus what it is that you want him to tell us so I can have an idea of where we are going?

MR. MOORHEAD: Well --

THE COURT: Put a question to the witness as to what you want him to tell us.

BY MR. MOORHEAD:

Q. Mr. Sewell, did you present the first 160-page draft of the Basic Text of Narcotics Anonymous to the literature process as it then existed?

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A. To the board of trustees.
Q. Is that a yes?
A. Yes.
Q. Mr. Sewell, did you ask for any by-line recognition or royalty for your beginning or creation of that work?
A. Not at all.
Q. Subsequent to that event, would it be fair to say that, to the best of your recollection, that there were over 1500 people who, in fact, participated as authors of that document?

MR. SYNNESTVEDT: I object, Your Honor.

THE COURT: That's what is called a leading question.

BY MR. MOORHEAD:

Q. To your knowledge, how many others participated in the development --

MR. SYNNESTVEDT: I object, Your Honor. It assumes a conclusion.

THE COURT: What I suggest you inquire, Mr. Moorhead, is whether the witness knew whether anybody else got any work from it. If he says yes, then you might ask him who they were or how many there were or whatever.

BY MR. MOORHEAD:

Q. Were there others besides yourself that participated

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in the authorship of the Basic Text?
A. Yes.
Q. Do you know who they were?
A. We have minutes and records.
Q. Do you have the original handwritten drafts of those original authors, or certified copies thereof in your possession?
A. Yes.
Q. Would it be safe to assume that there were more than 900?
THE COURT: That is a leading question.
MR. MOORHEAD: I'll withdraw the question in that way.
THE WITNESS: There were at least a thousand direct participants world-wide.
MR. MOORHEAD: Thank you, sir.
BY MR. MOORHEAD:
Q. Was there any material or financial support whatsoever developed during the development of the Basic Text from 1978 until 1982, when it was approved at the World Service Conference?
MR. SYNNESTVEDT: I object, Your Honor. That assumes facts not in evidence.
THE COURT: Let's just unpack the question and not give the historical end. I don't know, Mr. Moorhead,

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maybe I'm not making it very clear on what the concern is. You put a question in terms of was there any financial support during the period from such and such until such and such when this document was approved by the World Service Conference. I'm not sure that we know about the end-point approval. You just confine yourself to, did somebody provide some substantive support or whatever. And if the witness -- if you want to get into the record when this was adopted, by what body, and the witness knows, then you can ask him that as a separate question.

BY MR. MOORHEAD:

Q. Mr. Sewell, during the development of the text, was there any, based upon your obviously highlighted -- your leadership position in this and your constant and active participation, were there any resources given to you from anywhere other than within the Literature Committee and the people that were in the groups and areas and regions?

MR. SYNNESTVEDT: I'm going to object, Your Honor.

THE COURT: You're talking about financial resources? I'll allow that.

THE WITNESS: I hate to ask you to repeat the question.

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THE COURT: Perhaps you can simplify the question.

BY MR. MOORHEAD:

Q. The question is -- I'll try to simply state it.

During the initial development of the Basic Text, up until the time that it was ultimately approved, were there any donations or financial support from the World Service Office?

A. No.

Q. Where did all of the support for the printing, distribution, writing and development of the Basic Text, prior to its approval at the World Service Conference, come from?

A. Directly from the Fellowship and from the World Service Conference, and some of the regions and areas that provided support.

Q. Thank you. Could you tell us upon what date the copy -- the approval, the final draft copy of the Basic Text was approved by the World Service Conference?

A. You mean the '82 WSC? That's when the book was basically approved by the Fellowship.

Q. And how did the Fellowship get those copies of the book for which they were able to look at it to determine whether they would accept the book as their Basic Text?

A. The World Lit Committee raised the money, had the

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books printed, sent a copy of the review form, which had a gray cover, to every group in the world that we could locate, including Calcutta, Dublin, Barcelona, all over the world. And also later sent out the approval form after several more conferences.

The material got as good as we thought we could do at the time, and we sent it out to every member in the world again.

Q. So you would say that the groups of Narcotics Anonymous and the membership around the world were the persons that either, A, accepted the Basic Text as an official publication of the Fellowship, or rejected?

A. That's how it's done, yes.

Q. Is that currently done to this date, that the Fellowship, through its group conscience, approves or rejects a piece of literature?

A. I don't know what the current system is. There's a written system and then there's another system.

Q. Could you --

A. The two are in conflict.

Q. Could you --

A. To my mind, the answer is yes, because the written system still stands.

Q. I see.

A. It's in the temporary working guide.

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Q. I see. So what you're saying, sir, is that in fact the groups of Narcotics Anonymous are the -- for lack of a better word, maybe something more descriptive for the understanding of everyone here -- the buses of service structure of Narcotics Anonymous?
A. That's where the ultimate authority resides.
Q. Would you state the tradition for the Court, what that tradition says where that statement, the ultimate authority, is?
A. For our group purpose, there is but one ultimate authority, a loving God, as he may express himself in our group conscience. Our leaders are but trusted servants. They do not govern.
Q. Thank you, sir. Would you say that -- is there any indication to you, by your understanding of the traditions upon which our recovery is based, how the WSO could be engaging themselves in activities that they are currently in under the 12 traditions?
MR. SYNNESTVEDT: Object, Your Honor, since so many activities occurred and it's not of record.
THE COURT: I think Mr. Synnestvedt is concerned that your question doesn't really identify for us what you mean by activities of the WSO was currently in.
BY MR. MOORHEAD:
Q. Taking an individual member to court in violation of

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their personal anonymity, which is the family principle of our Fellowship, would it be safe to say that the traditions prohibit such activities?

A. I can't really understand it. I've written the office about this, and I've recommended that a court action expand the problems instead of dealing with it internally. I got a response. It was argumentative. But, no, I don't understand.

World Services is committing funds and time and resources to engage in a lawsuit on one hand, a primary service center, against an individual member who is acting as a member of his home group, and that the legal defense funds, meaning to be established old-timers -- no, it's very confusing, I do not understand. I don't think it's structurally proper and correct.

Q. Mr. Sewell, can you tell me, having been a trustee of Narcotics Anonymous for a total of -- how many years have you been a trustee?

A. I served a full five-year term.

Q. In your knowledge of our procedures and policies, do you believe that our service structure has followed its own guidelines and policies in pursuing this matter?

MR. SYNNESTVEDT: Your Honor, this has no relevance.

THE COURT: By pursuing this lawsuit?

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MR. MOORHEAD: Yes, sir, by pursuing this lawsuit.

THE COURT: You may answer.

THE WITNESS: I can't believe so because the event itself is precedented in my knowledge. World Service Office, Board and Conference, has not consulted the regions or areas or groups to get a basis of group conscience to backup their action. Instead, they are a bunch of wild rumors flying around a very few facts.

Q. Thank you, Mr. Sewell. The next question I have, you are familiar with a document entitled the WSO By-laws?

A. I've read them several times through the years, but I don't have them memorized.

THE COURT: Be sure that Mr. Synnestvedt knows the document you're talking about.

MR. MOORHEAD: Your Honor, I would like to see if they would attest that they are true copies of these documents, if possible. I mean I'm trying to be responsive.

THE COURT: If you gentlemen would take a minute or two to confer. I don't know whether Mr. Synnestvedt and Mr. Fields are in a position to stipulate --

MR. MOORHEAD: How much of this notebook are we permitted to see, Your Honor? This particular piece is

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the original copy of the by-laws filed with the State of California. It's a document here --

MR. SYNNESTVEDT: Can you take them out of the notebook so we don't get confused with the other material?

MR. MOORHEAD: Yes, I suppose I could. We have here a copy of the by-laws of the State of California registered January 23rd, 1977. Mr. Hollahan referred to those earlier. And here's a copy of the current by-laws, circa 1990, of the World Service Office of California Non-profit Public Benefit Corporation.

I would be referring to several sections in these by-laws. For our group purpose, there is but one ultimate authority, a loving God as he may express himself in our group conscience. Our leaders are but trusted servants. They do not govern.

MR. SYNNESTVEDT: Neither of the documents that have been presented to us is the up-to-date by-laws. They both appear to be superseded editions.

THE COURT: I see. All right.

MR. MOORHEAD: Your Honor, I would --

THE COURT: Does Mr. Hollahan have up-to-date by-laws with him?

MR. HOLLAHAN: Not with me, Your Honor.

MR. MOORHEAD: Maybe Mr. Hollahan could answer

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for the Court, if Section 6 --

THE COURT: Why don't you show Mr. Hollahan the sections that you have in mind you want to examine about and find out whether his knowledge --

MR. MOORHEAD: Section 601--

THE COURT: Why don't you sit with Mr. Hollahan and see if you and plaintiff's counsel can resolve the matter?

(Pause.)

MR. SYNNESTVEDT: Your Honor, our position remains as it was, that these are two superseded versions of the by-laws, but we have no objection to Mr. Moorhead continuing to question this witness about the superseded versions, if he wants to.

THE COURT: All right.

BY MR. MOORHEAD:

Q. Mr. Sewell, in Section 6 of the WSO by-laws, which is the section on powers of the directors, is there, to the best of your recollection -- or if I may give them to you to look at -- is there anything in those powers of directives that would allow them to be --

THE COURT: Suppose you show the witness the section?

MR. MOORHEAD: I would like to state that these were, in fact, in force at their time and they are --

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THE COURT: Mr. Moorhead, I'm sorry, but I can't accept your recital. You're here in your role as substitute for a lawyer, not a witness.

MR. SYNNESTVEDT: Is there a pending question, Your Honor?

BY MR. MOORHEAD:

Q. Yes. Is there anything in there that would indicate to you that the WSO has a right to participate in the lawsuit against a member?

MR. SYNNESTVEDT: In a specific section that you referred to?

MR. MOORHEAD: Yes, Section 6.

THE WITNESS: I'm confused by the question. It's hard for me to give a black and white answer. I've already stated that within our structure, I think this is improper because it doesn't have a basis of group conscience or a precedent for major legal action. There was some little thing about a group in Hollywood that was making a little white booklet, but it was small. This is major.

So I would say, yes, I see some things that would support WSO taking legal action against an outside agency, and they probably would be supported doing something by the Fellowship; whereas, they are acting prematurely in this case.

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BY MR. MOORHEAD:

Q. Thank you. This is the exhibit that was submitted by -- it's a Fifth Edition of Narcotics Anonymous Basic Text in the section under the the traditions. Would you read the highlighted area?

A. The 12 traditions of the NA are not negotiable. That appears in all the versions. That appears in all the versions.

Q. Thank you. Would you read for us out of the WSO by-laws the body of Article 11 there?

A. 11.01. "This corporation is a service entity which serves a function within the totality of an organization known as Narcotics Anonymous Society. In so doing, it endorses the aims, goals and purposes of that organization, and, in fact, by special endorsement per Section 11.02 hereinafter, it operates under the guidelines of the twelve traditions as espoused by the Narcotics Anonymous Society."

1102. "All directors and officers of this corporation shall be, and are, subject to, and will abide by, the principles of the twelve traditions of Narcotics Anonymous Society as set forth in the book identified and entitled as Narcotics Anonymous and shall further abide by motions adopted at each World Service Conference meeting and implement decisions reached by the WSC as

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they pertain to operation of this corporation. It is herein specifically acknowledged that this corporation acts as a fiduciary in its dealings with WSC and the Fellowship of Narcotics Anonymous. Furthermore, this corporation shall be subject to the decisions and actions of the board of directors of the World Service Office, Inc."

Q. On the totem pole, Mr. Sewell, in terms of the process of decision making in Narcotics Anonymous, is it fair to assume or to state with fact that the WSO is the last -- is the person that implements a final decision on the part of the Fellowship and the World Service Conference?

A. I think you've divided your question.

Q. I will try to state it again.

Has the World Service Conference met and voted as a whole and instructed the WSO to pursue legal proceedings?

MR. SYNNESTVEDT: I object, Your Honor. There's no foundation. There's no indications that this witness has knowledge.

THE COURT: The witness will have to respond within the limits of whatever his personal knowledge may be.

THE WITNESS: Not yet on this case or on any

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case like this in the past.

MR. MOORHEAD: Thank you. That will be all, Mr. Sewell.

THE COURT: Mr. Sewell, you'll have to hold on to see if Mr. Synnestvedt has any questions to put to you.

MR. SYNNESTVEDT: No cross, Your Honor.

THE COURT: All right, thank you very much, Mr. Sewell.

MR. MOORHEAD: Your Honor, I would like to call myself, if I could.

THE COURT: All right.

DAVID MOORHEAD, was duly sworn.

THE WITNESS: My name is David Merritt Moorhead. I am better known as Grateful Dave Addict. I reside at 1110 East Palmer Street in Philadelphia, Pennsylvania.

I don't know what I should say. I've been a member of the Fellowship Narcotics Anonymous since March 17th, 1984, and I've been participating in the service structure, from the world to the area to the region in literature. I've been regional PI chair. I've been regional literature vice-chair, and a couple regions parliamentarian, and the chair of the Philadelphia region.

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I'm quite familiar with the structures of the policies, the guidelines of this Fellowship. I have in my home and personal archives almost every piece of paper ever generated by the World Service Conference. If necessary, at some point, I will, you know -- I can probably inundate this court with documentation.

I would like to go on the record as stating that the alleged copyright infringements and what have you that the plaintiff is carrying in my direction, to the best of my knowledge and belief, it appears to me to be some kind of a personal vendetta. And the reason I say that is that the plaintiff has full and complete knowledge that this activity has been going on in various sources and with various individuals throughout the Fellowship. There is even documentation that I can show that this was a problem in 1984.

There is at least -- I have sworn depositions that people have bought books from other sources. I have various copies over there. Mr. Hollahan does not show any supporting data that I, in fact, was the printer. There's no way that he can prove that. It says, as an agent of my home group in that testimony, in that letter, that he offered in testimony. I have a home group member here.

He alleges that I am an individual. I would

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like to read into the record as part of my testimony, from the Fellowship's own publication called the World Service Conference Fellowship Report, a statement from the chairperson of the board of trustees. In pertinent part it says, this is not a financial concern. And the issue is not that this text is going to decrease the WSO's income.

Clearly, there's no supporting documentation. You know, there is no clear evidence that there's any harm that has been caused financially. I would like to ask them, if they have any documentation at this time, would they please bring it forward.

I would say that under the 12 traditions, that they are -- in our service structure, that they have not waited for the decision of the Fellowship in proceeding with this matter. I have feelings that I was characterized, within the body of the complaint, that I had unfounded and illogical distrust of the WSO. I can only infer from that that anyone that questions the WSO's activities over the past eight years must be somehow crazy.

The WSO has proven consistently over the years that they -- that they are not, in fact, the protectors of the integrity of our message; that they have, in fact, altered our message; that they have ignored the will of

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the Fellowship and entered into contractual agreements.

The copyrights in the body of the complaint that were submitted by Mr. Hollahan's organization there claim that the Basic Text was warped, made for hire. I would question that. I would question again why the copyright registrations only begin in 1987. I can produce and will bring documentation forward, if necessary --

THE COURT: May I interrupt you at this point?

THE WITNESS: Yes.

THE COURT: You spoke of a copyright registration beginning in '87?

THE WITNESS: Yes, sir.

THE COURT: Are you familiar with the exhibit attached to -- I believe it's attached to the complaint that seems to show registrations dating back to 1983? Maybe I misunderstood the point that you were making.

Maybe it's not of importance, but you seem to be making some point.

THE WITNESS: They make a reference --

THE COURT: Exhibit F to the complaint purports to be a copyright registration of the First Edition of Narcotics Anonymous. It's dated, National First Publication, April 27th, 1983.

THE WITNESS: As you can see, sir, this is wiped off the page here. It says, effective date of

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registration, 6-15, and that's wiped off the page. I believe that you'll see that they registered that copyright in -- here it is -- 6-15-87, sir. So they are claiming retroactively -- what I am attempting to indicate to the Court is that I do not believe that there was a proper statement in the registration as to the ownership of that.

I believe the validity of the WSO's holdings of that copyright is in serious question considering the sworn deposition that I have from a literature chair and supporting documentation that he, in fact, revoked the copyrights and the right to print from the WSO. It's my contention that the WSO has been illegally printing the Fellowship Basic Text. I'm sorry, turn this thing down.

But, you know, sir --

MR. SYNNESTVEDT: Now I can't hear you. I'm getting mixed signals.

THE COURT: Just calm down, Mr. Moorhead. Take it easy.

THE WITNESS: Thanks. It's real hard to take it easy, sir, when I believe that I've been singled out unfairly, you know. I don't believe, first of all, that, you know, the number of copies that they allege that I, in my own volition, printed, that I talked about in that letter, make it qualified for being in this courtroom. I

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don't care. They say that it cost 30 cents to produce. They say I said it was 50 cents. They said I said I was going to do 50,000 of them.

In October, I told them that I was not currently, and I spoke that to you. I have not currently been involved in printing and distribution of this material. I was never -- and I would like to bring a point of clarification in that last paragraph. It says that I, as an agent of my home group. My home group is made up of 56 members, which they failed to name in the suit, who participated fully in the decision to print.

There are ten copies of the, quote, alleged text, which are all different. My copies, the copies that my home group had anything to do with, have three staples in them. The text that Mr. Hollahan had are two. So I know that that doesn't -- that that doesn't come from me.

He claims that I said to him that it was hot off the press. What I said to him was that I saw this and it was -- and this is a most recent copy which I'm sure you would like to take home to the office to add to your archives.

The introduction of letters and tape recordings, or transcripts of the tape recordings of my answering machine in the NA magazine, it says they've been

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discussing this issue since May. I fail to see what immediate and imminent harm there is to the Fellowship based on the support in the November document. In the November document here, they said how should we proceed. They are asking for direction from the Fellowship on how we should proceed with this. But did they wait for that direction? This came out in the middle of November and was not distributed to the service structure or service bodies of the Fellowship until after the lawsuit had already been initiated.

You see, sir, there are many, many, many things that if I was given further opportunity and some assistance, legal and financial and otherwise, that I could bring before this Court that would show that this matter is improperly brought; that the plaintiff has no clear right to relief; that there are many factual misstatements throughout the body of the complaint and the declarations of Mr. Hollahan and Mr. Tooredman. Mr. Tooredman's declaration claims that I, in fact -- that he's known me for five years. Yet, I have a letter that is written as recently as July 18th over here where Mr. -- to an attorney in New Orleans, that Mr. Tooredman calls me David Moorhouse. So, obviously, Mr. Tooredman doesn't know me or know my name.

You know, when you have been threatened with

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lawsuits, and when cease and desist letters from an attorney in California have been mailed piecemeal and willy-nilly to members all over the membership threatening them with legal action and penalties of perjury, which is documentations that I'll bring in -- I've got stacks and stacks of letters of support. I've got stacks and stacks of communications. I have over there commercial material with the NA name and the NA logo that have never been sought permission, never been granted permission and have been used commercially.

The name Narcotics Anonymous was registered in 1942 in the books of organizations in Lexington, Kentucky. It predates this. What the WSO states in their complaint is that the term Narcotics Anonymous and the servicemarks and the names are original with the WSO. That, since 1953, they have been -- spent hundreds and hundreds and thousands of dollars promoting the name Narcotics Anonymous, when WSO didn't exist officially until 1977. You know, I'm not denying that as a member of a 56 member group that we, in fact, copied material that belongs to us.

I participated in the revisions. WSO claims that they have revised these things, that the WSO revises them. There is no way in our literature or any of our Fellowship procedures or documentations that this is even

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remote -- can be remotely inferred. They were only involved in the last stage, and that is to send the thing in its final approved form, vis-a-vis the entire Fellowship, to a production house and to publish it. That is the only point in time that the WSO was involved in the production and distribution. They are not in any way involved with the approval.

Mr. Hollahan states that he is the director of the approval, has, you know, responsibilities for the approval of any literature. I mean I could go on and on and on and on. But I will submit to a sworn deposition from Mr. Page Coverton, who released the copyrights upon the direction of the World Literature Committee to the World Service Office for production, after the World Service Conference and the WSO failed to produce the book in its proper form, made changes in it and deleted it.

I mean we've been off and running on it, Judge Pollak, sir, for years and years and years. You know, I find myself in a very disadvantageous situation right now, and I'm unable to really adequately, you know, prepare. But I am sure the plaintiff claims that they have a great likelihood of success. I am almost absolutely assured that they will not, in fact, succeed.

You know, this suit seems to be malicious in its intent, and properly timed in knowing that I would not be

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able to, through the holidays or because of my financial condition, to defend this adequately or to seek legal counsel or to prepare. The only law book I have is that federal book of procedures that somebody loaned me. God knows, I've been studying it. But I can say that, you know, with all clarity, that this issue really has nothing to do with me as an individual. And I believe that what it is is an attempt to, by the plaintiff's corporation, to sever itself from the decision making body, and any kind of responsibility to the Fellowship of Narcotics Anonymous.

I don't know, but it seems to me to be kind of a legal -- what do they call it -- legal maneuver to do that. Kind of like -- let's see, back when I was a criminal, they said theft by conversion, I believe.

I believe that, you know, what we're looking at here, based upon Mr. Synnestvedt's statement to me subsequent to that conference that you ordered us to have, he was totally unwilling to, you know, to change the TRO phase at all. He indicated to me that any persons in active concert or participation who receive actual notice of this -- now, I guess that means a certified letter with a copy of this stuff sent out by the voluminous mailing list of the plaintiff to enjoin and restrain everyone in the Fellowship.

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You know, I can see this stuff happening. I mean, I can submit for the record letters and documentation where I've been called a thief, where I've been called a liar, where I've been called that I stole the book, that I mutilated the book. There isn't a single word in that book, Your Honor, that is any different from any of the publications that have been previously produced by the Narcotics Anonymous Fellowship. It has done nothing to harm the Fellowship at all. The harm has been created by the plaintiffs. The plaintiff's activities.

If it goes any further than this, Your Honor, I feel like that, you know, that I will have some -- to make some -- to answer the complaint and make some affirmative defenses and counterclaims and bring up new matters. I would not like to burden the Court with that frivolous proceeding, with an internal matter. It really hasn't even gone through the processes, that we, as members of Narcotics Anonymous in the Fellowship itself, the plaintiff corporation, have failed to follow our procedures and guidelines in this matter.

I think it's quite a waste of the federal court. They want their way. They want to do things their way. And so they bring it here to resolve it rather than resolving it through the processes and

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procedures that they have failed to follow.

I would like to, you know -- I mean I'm just kind of trying to wing it here and to give you and the people out here an idea of what's really going on. But there are people all over the country that are producing this.

I have a letter that is dated December 3rd, where they said that people all over the country will be doing this. It's been an ongoing activity since the beginning of Narcotics Anonymous. And it's never been -- you know, they sold $50,000 worth of merchandise at the New York regional convention, and never once did they get a royalty. But I can guarantee you this much, if they are awarded this restraining order and temporary injunction, that that is exactly what they'll do.

We have never had a problem with misuse. We've pursued a lawsuit as a Fellowship. We were never asked to have our -- the Fellowship was never asked to have our trademark and service name registered. They claimed that they have permission from the World Service Conference to sue members of Narcotics Anonymous. I have there the minutes of that. It is specific to a legal matter called creative arts lawsuit which they entered into without asking the Fellowship previously. The Fellowship as a whole has never been asked whether they wanted to pursue

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legal action against anyone ever, ever.

I guess I'm going, you know, to let these gentlemen cross-examine me or whatever they do now. I guess I'll reserve the right to recall myself, I guess. That's essentially what we're about here.

THE COURT: Mr. Synnestvedt, do you wish to cross-examine?

MR. SYNNESTVEDT: May I have a moment, Your Honor?

THE COURT: Sure.

(Pause.)

MR. SYNNESTVEDT: No cross-examination, Your Honor.

THE COURT: All right, thank you, sir.

MR. MOORHEAD: I'd like to call to the stand, if it's possible at this point --

THE COURT: You want to call another witness?

MR. MOORHEAD: Yes, sir.

THE COURT: How many more witnesses do you have in mind to call?

MR. MOORHEAD: Well, I had Ms. Toni Moore quickly to answer two or three questions, and then Mr. Allen to wrap-up. I will assume, sir, that that will take no more than 20, 30 minutes tops.

THE COURT: All right.

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TONI MOORE, was duly sworn.

DIRECT EXAMINATION

BY MR. MOORHEAD:

Q. Toni, are you a member of By The Book Group?

A. My home group is at the Book Group Study, which meets at 2773 Kensington Avenue.

Q. Could you briefly describe the surroundings of our --

A. We meet in a former shooting gallery on Kensington Avenue across the street from drug dealers and Guardian Angels who get beaten up with baseball bats on our doorsteps and people crawl into our meeting with a promise of life.

Q. Would you say that -- could you estimate our normal attendance?

A. It can go from 45 to 60 newcomers every week, and we get new people constantly from the halfway houses, not mandated. They choose our meeting. They choose our NA meeting to come there on Thursday nights.

Q. Have we distributed free books in our meeting?

A. Yes, we have. We're a book study meeting, and the people in attendance need the book to study the steps.

Q. Approximately how many free books do you think we've distributed since June?

A. It would have to run in the hundreds, in the

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hundreds, and we provide them for people who come in who left their text at home, and they are free to use it while they are there. We ask them to replace it when they leave. If they don't have a text, we ask them to please take it with them so they have the 12 and 12 when they walk out the door.

Q. Have we ever solicited -- has there ever been a solicitation for funds to pay for such a distribution?

A. No, we have only the seven tradition standards in all NA meetings, and that's a very local action because our members are from halfway houses. They are on welfare and they don't have money. They don't have money.

THE COURT: Excuse me, maybe I missed something, but perhaps you're going to elucidate it, Mr. Moorhead. The reference to books, I don't know whether you're talking about -- whether we're referring to the volume sometimes called a Basic Text or another book?

MR. MOORHEAD: We are speaking specifically of the --

THE COURT: I'm not asking you as a witness. I'm asking you as a lawyer to make sure that the witness who is on the stand identifies what it is that is being referred to, some common understanding of --

THE WITNESS: Yes, that's a form.

MR. SYNNESTVEDT: I have not seen this exhibit.

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MR. MOORHEAD: It's the same exhibit that you submitted to the Court.

THE COURT: Mr. Moorhead, for the purposes of conducting a lawsuit, if there is an exhibit to which we are referring by number or otherwise, that would be fine. If not, if we are introducing a new document which is not yet an exhibit, perhaps you will identify that. But you have been -- I'm not saying that you need to introduce an exhibit. You've been asking the witness about a book.

THE WITNESS: Could I possibly clarify it a little?

MR. MOORHEAD: A free Basic Text, blue copy --

THE WITNESS: The same text that I found in the complaint filed in the federal courthouse here, yes. A true copy of the book that we distribute is in the complaint filed by the plaintiff.

THE COURT: You're referring then to -- do I understand that we're referring to the --

THE WITNESS: Exhibit A or B?

THE COURT: I don't know. Mr. Moorhead, I'm going to have to ask you.

MR. MOORHEAD: Hollahan Exhibit A.

THE COURT: Would you make sure that is indeed what the witness is talking about?

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MR. MOORHEAD: Yes.

THE WITNESS: Yes, this appears to be a photostat of what actually is a bound book that we distribute.

THE COURT: All right. And that is the -- as I understand it, that is the same as Exhibit A of the Hollahan declaration?

THE WITNESS: Yes, it is.

THE COURT: All right, go ahead.

BY MR. MOORHEAD:

Q. Could you tell us how we arrived at a decision to --

A. In a group conscience meeting of March 8th, the home group members met. We discussed the financial aspects of the group. It was apparent that we had tremendous need. What we didn't have coming to the meeting is finances.

We had put out a call to the Fellowship to come and help us deal with 40 and 50 newcomers a week to bring knowledge of the steps into this meeting, and the Fellowship did not respond. It was not a glamour meeting or a nice area. So we discussed literature and purchase of literature, and we found the literature sold by the WSO to be expensive, and we felt that we had a group in dire need.

We sought an avenue to provide the needs for our members. And the avenue that we voted on that we

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conscienced in our group conscience was to find a way to get a cheaper book on the table of our meeting, where we we could put 50 and 100 texts out for our members.

Q. Subsequent to that, did we submit this particular document to the Area Service and the Regional Service Committee for them to study and look at?

A. Our GSR took a report to the river front area service, and reported that we were producing a book to put on our tables for our newcomers. As regional secretary at the time of the Greater Philadelphia Region, I even made a representation as a home group member and advised the region, from my status as a member of the executive board, what my home group was doing. From the beginning, we advised the area, we advised the region and we welcomed input and we welcomed interest.

Q. So would it be fair to say that we went through the proper service channels to bring this book to the attention of the Fellowship?

A. Yeah, you could call it service channels. It seemed like a gauntlet at the time because the fear that was generated in the people that we had to deal with was pretty frightening.

Q. Would you say that when we first brought that, that there was a rather good feeling by everyone who saw it about it?

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A. Yes, because there are a lot of groups that just financially don't have the capabilities to get the message to the addict who still suffers.
Q. What was it, in your estimation, that caused -- describe the events following the release of the trustee letter.
A. Well, for me personally, I was thrown off the region, the Greater Philadelphia Region of Narcotics Anonymous for my --
MR. SYNNESTVEDT: What trustees are you talking about?
MR. MOORHEAD: It was a letter that was sent out by the World Service Board.
MR. SYNNESTVEDT: Could you please identify the document for us?
MR. MOORHEAD: Yes, sir, I can. Let me withdraw that, to be good to the Court. I'm going to withdraw that question.
THE WITNESS: All right.
BY MR. MOORHEAD:
Q. Do you have with you any indication, documentation how our membership -- how the membership of your home group feels and the support, and could you submit that to the clerk or to the Court or to Mr. Synnestvedt? I will thank you for --

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A. I'm sorry, I have no copies of it at this point. This is an original. It's undated, but the date that this document was signed was the first Thursday after the lawsuit was filed, which was December 6th.

At that point, we had 56 members in attendance at the By The Book Group Study. They signed this, "As members of NA (By The Book Group), 2773 Kensington Avenue. We demand WSO cease the federal lawsuit against one of our members."

MR. MOORHEAD: Thank you. One further question. Do you have knowledge of the date of the letter that was alluded to by Mr. Hollahan, and Mr. Tooredman in his deposition, that was distributed shortly thereafter a June or so conversation, and that they claim to have been circulated with every copy of the book that was given out?

THE WITNESS: Is that the comments on NA service?

BY MR. MOORHEAD:

Q. Yes, that's the one.

A. Yes, it was produced along with your resignation as a policy chair, and your resignation as RSR board member. I took all three documents to the regional weekend of August -- it would be the first Sunday in August. I'm not sure of the actual date; maybe August

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5th, 4th or 5th, I believe, that weekend. And I took the documents with me to the region, as the policy chair was not in attendance that weekend, and distributed them to all RSR's to take back to their areas.

MR. MOORHEAD: Thank you. No further questions at the moment.

MR. SYNNESTVEDT: No questions, Your Honor.

BY THE COURT:

Q. Ms. Moore, is your group currently engaged in the distribution of the document that's been identified by you?

A. The group does not distribute. The group puts them on the table and home group members -- the books that we have in stock, the home group members read and put back on the table. There have been no printings in quite awhile, that I know of. And so, no, there is no active distribution happening, that I know of.

But the members ask about the book and -- we really had not advised the newcomers of what was happening legally, because in recovery they don't need to know outside interest, which is what this is that's happening. They don't need to know about service structure, because that's not Narcotics Anonymous. Our group is Narcotics Anonymous. And what we do in the group is share the steps with them. And when we did

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share with them the day that this document was signed by everyone that a lawsuit had been instituted, one gentleman just came up to me and picked up a book off the desk and he said, "You mean they are suing because you're giving this book to me to read?" And I said, "Yes." He said, "But this is helping me." I said, "Well, yeah, but they are not making money for it."

Q. Would your group be able to achieve its purposes adequately by making available the Fifth Edition of the Basic Text?

A. Well, no, it would not be carrying a pure Narcotics Anonymous message to the conscience of our group, because we recognize the Third Edition Revised as the last group that was really clear, and through what we considered to be the Fellowship channels.

We really cannot afford to buy the book at the price they sell it. They have indicated at the Arlington Quarterly, which I did attend as a home group member, they indicated they really had talked about over the years reducing the price of the text, but they always decided not to. Several people said they thought it should cost more.

Q. If price were not the problem, the text was available for distribution, then would you distribute it or make it available to your members?

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A. Oh, yes, if World Service Office produced the book that's been conscienced by the regions in our area. There were areas that were conscienced when the Fourth Edition came out, and it came out all wrong. They conscienced to go back to the Third Edition Revised. This conscience was ignored.

If the WSO would provide us with the book that we want, the Third Edition Revised, and certainly at a price that is not exploiting the Fellowship or making our meeting a storefront for their literature, yes, absolutely. We're not out to be literature tycoons. We're just trying to carry the message efficiently, as inexpensively as possible, to people who desperately need it and want it.

Q. That is what you would like -- you would be willing to distribute, if you had it available, or to share with your members, you would be willing to share the volume that is called Third Edition Revised?

A. Yes, with the original fourth and ninth traditions which were adulterated by the World Service.

Q. Now, of course you're leaving me, Ms. Moore. I'm talking about a particular book called the Third Edition Revised.

A. Yes, this book.

Q. No, that is not the book that the WSO produces as a

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Third Edition Revised, is it?

A. No, it's not, no.

Q. I'm asking whether the book that WSO produces, the Third Edition Revised --

A. For that, I would have to consult my group conscience. This is what my group conscience had at the table.

Q. The one that your group conscience authenticates is the document that has been produced by your group.

A. Yes.

Q. Is that correct?

A. Yes. But I would have to go back to my group and tell the group. I would have to take that back to the group. That's not a decision that I could make. This decision was already made by the group, and that's why I was able to say yes on that, because that conscience is in effect. But this would require a totally new conscience.

Q. And with respect to the current edition, that I understand to be the Fifth Edition, if that were made available to you?

A. No, I have no interest in it.

Q. I see. So the only edition that would possibly be of interest would be the Third Edition Revised, and that you're not sure about because you feel it's an

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adulterated position; is that correct?
A. Well, I would have to take that back to the group conscience.
Q. But that is the only edition that would even potentially be something that your group could share?
A. Given the information that we have shared as to the process of how the Fourth and Fifth Editions happened, yes, in all conscience, we don't want those books on the table.
THE COURT: I see. All right, thank you, Ms. Moore.
MR. MOORHEAD: I'd like to call one more witness, please.
WILLIAM M. ALLEN, III, was duly sworn.
DIRECT EXAMINATION
BY MR. MOORHEAD:
Q. Would you state for us how long you have been clean?
A. I've been clean for a little over 11 years.
Q. Can you state for us briefly your participation in the World Service structure, Narcotics Anonymous?
A. World Service structure, I got involved basically in 1981, when I was given the Mid-Atlantic Regional Literature vice-chair position, and got involved in the literature movement of writing Basic Texts for Narcotics

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Anonymous.

I proceeded to stay involved with the World Lit Committee until 1984, when I went to World Service Conferences as an RSR, Mid-Atlantic Region.

I joined the World Public Information Committee that year. I was on world H&I, Hospitals and Institution Committee. I served on the World Convention Committee for a year. I served on World Public Information for a five-year period. I served one year as World Public Information vice-chair.

I served three years as an RSR for the Mid-Atlantic Region. So I have approximately seven years of actual involvement in the World Service Narcotics Anonymous.

Q. Could you state whether, in your understanding and knowledge of our policies and procedures, having been a member and participant of that service structure in that capacity, could you say that the WSO has properly -- is properly behaving in a lawsuit against an individual member?

MR. SYNNESTVEDT: I object to that question. It's vague, confusing.

THE WITNESS: It's not confusing to me. It's very precise to me.

THE COURT: Well, it may be, sir, to you, but

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some of us who are less familiar with the problems that are being discussed and the organizations that are involved have a little difficulty assigning much clarity to that. So I will sustain the objection and ask Mr. Moorhead to put the question more precise.

MR. MOORHEAD: I'll try to rephrase that statement.

BY MR. MOORHEAD:

Q. In your opinion, is this a case of the tail wagging the dog?

MR. SYNNESTVEDT: Objection, Your Honor.

THE COURT: Sustained.

MR. SYNNESTVEDT: This witness is a fact witness.

THE COURT: Sustained.

MR. MOORHEAD: I don't quite know how to elicit. I'm not trying to elicit any response. Would you just -- you'll have to be patient with me.

THE COURT: My problem is when you say to the witness, is this a case of the tail wagging the dog, that's an illusion uncommon in the world of general speech. But for the likes of a person myself, who really is external to this dispute and external to personae, external to the institutions, it's a little hard to assign very concrete meaning to that. If you can try to

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shape it in some simpler way.

BY MR. MOORHEAD:

Q. Would you, in your own words, describe the process of decision making in Narcotics Anonymous, and at what point along that path that the WSO comes in?

A. What happens, there's a group conscience process that starts which is broad base of our Fellowship. My home group participates in the decision making process by coming up with ideals, and dealing with situations of the World Service of our Fellowship. We send motions to our area. The motions get approved through our area process, and from the area they go to the region and get approved through the region.

Then they go to World Service Conference, which the conference agenda comes out once a year. A conference agenda is supposed to be prepared already this month and be out to the Fellowship by February 1st.

In our conference agenda, we go through the agenda process of collecting group conscience for our conference at the end of April, beginning of May.

MR. SYNNESTVEDT: Your Honor, the witness has been referring to a document which has been laid on his desk.

THE WITNESS: I didn't refer to this document at all.

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THE COURT: Fine.

BY MR. MOORHEAD:

Q. During that entire process, in your opinion and belief and experience, do the groups of Narcotics Anonymous always get referred to in the process of decision making? I mean, in other words, in that process that you described, starting with the group, then to the area, do the groups submit something to the area and then it goes back to the groups?

A. Yes.

Q. Would you kindly describe that, how that back and forth discussion and --

A. What happens in my home group, my home group makes -- what happens in the conscience, somebody will submit an ideal or concept to the group, and the group will discuss it, and we'll send it to the area, and the area sends it out to all the groups that are participating with the area service structure.

Then all the groups participate in collecting a conscience on that and make a decision. And then we go from there to the region. Then the region sends it back out to all the areas, and all the areas within that region send it to the groups. Then it comes back to the region, and then we submit it to the World Service Conference agenda that deals with conference stuff.

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It's supposed to be put in the agenda and sent out to the Fellowship. And then we go back through the process again of approval of motions.

Q. Based upon that process in this particular situation with a lawsuit instituted by the WSO, has that process occurred?

A. This process has not occurred, and my group has not received the conference agenda yet to be able to deal with this situation. So my group itself is unaware of the actual case itself. We've been aware of the propaganda and threats of our World Service Office, which has affected Narcotics Anonymous as a whole.

Q. Does your home group in that group conscience process, decision making process, do you and your home group provide free books to addicts?

A. My home group has not accepted a Basic Text from World Service Office since 1988, and do pass out a free Basic Text because of the violations of process of our conference and our World Service Office with interference with our Fellowship.

Q. Can you tell us whether your group is a part of an area service structure? That area service structure, has it ever voted to accept the fourth or fifth editions of Narcotics Anonymous?

A. No, the area service has never approved the fourth

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or fifth edition. We have disapproved the process of the fourth edition, and sent a letter to World Service Conference concerning that.

Q. Would you say that Ms. Moore's group and your group are only two -- how many groups would you estimate are currently providing free literature to addicts as a result of the alleged infringements that were submitted --

THE COURT: Mr. Moorhead, you'll have to find out from this witness whether he has any information with respect to what other groups do. We can't just take an estimate.

BY MR. MOORHEAD:

Q. Do you have information that you could share with us about the number of other groups across the country that -- or that in fact -- do you have knowledge of other groups in other places doing similarly alleged violations of laws, copyright ownerships?

A. I have knowledge of groups participating in, taking care of their own, not violation of set laws because the Fellowship does not feel that it's in violation of a law. It's how can the Fellowship sue itself. I mean your question ended real --

THE COURT: I think the problem is with the question. Weren't you trying to elicit information, Mr.

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Moorhead, as to whether there were other groups besides the witness' and Ms. Moore's groups that were distributing or making available free Basic Texts?

MR. MOORHEAD: Yes, sir.

THE COURT: Do you know, do you have any information?

THE WITNESS: Yes, I do.

THE COURT: What is that information?

THE WITNESS: There's a broad coalition of groups in Narcotics Anonymous that will not participate in the purchase of Fifth Edition Basic Text, and will make available a free Basic Text to its membership. And that coalition stems from here to California, from Miami up to Alaska, and it's happening overseas. This is not something that is a minimal thing, as the plaintiff wants to put it into one human being.

BY MR. MOORHEAD:

Q. Would you say, Mr. Allen, that there is a -- has been, and is a growing sentiment -- let me rephrase that. Do you have knowledge of a growing sentiment and discontent of the Fellowship, the activities of the World Service Office?

A. There's been a growing dissent since I've been involved with World Service Conference. It now has become more broader based than ever before, because it

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brought old members back out of California that got disenchanted years ago that are getting back involved since this happened, and have some feeling of being able to grasp their service structure back from who stole it from them. This hurts my heart to be here and not in the Conference where this belongs.

Q. Do you see how -- can you imagine --

MR. SYNNESTVEDT: Objection, Your Honor. The beginning of a question, can you imagine. It's just --

THE COURT: It's unlikely going to be a feasible question.

MR. MOORHEAD: All right, I need to confine myself.

BY MR. MOORHEAD:

Q. Is there any possible way -- in your opinion, is there --

MR. SYNNESTVEDT: Objection, Your Honor, calling for the witness' opinion as a fact witness is improper.

THE COURT: I don't think that's going to do it.

BY MR. MOORHEAD:

Q. Can you see any way in which this lawsuit could be beneficial to the public trust or to the Fellowship and membership of Narcotics Anonymous, or to the primary purpose of our Fellowship, as stated in the Fifth

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Edition?

A. Let's just say that I took this case to my business law professor. My business law professor told me it sounds -- and told our class -- it sounds like your World Service Organization has violated your primary purpose, and it's a sad situation for the day of your Fellowship. I didn't mention Narcotics Anonymous. I went over the facts, information that was provided by World Service Office, the facts of everything presented, and the law professor told me that this is a sad day for your Fellowship to even have to take this into a court of law, and it will not benefit either side of an issue. All it will do is to tear apart something that is out to help addicts throughout the world.

MR. SYNNESTVEDT: I object on the grounds of hearsay, and move that the answer be stricken.

THE COURT: Overruled. I don't think it helps us very much, but I'm not going to start manicuring the record. Let's move to something else.

BY MR. MOORHEAD:

Q. Were you in attendance at the 1988 World Service Conference?

A. Yes, I was.

Q. And what was your World Service position at the time?

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A. World Public Information Vice-chair.

THE COURT: Let me say that in overruling the objection, I am not accepting the evidence of what the unidentified business law professor had to say as substantive evidence. I'm accepting it as a statement made by the professor on the basis of facts as reported to him by the witness. That was the professor's reaction, and that's what has been reported. It doesn't weigh with me as substantive evidence of the rightness or wrongness of the legal contentions made here. Basically, for that reason, it has very little materiality at all.

BY MR. MOORHEAD:

Q. In your position as World Public Information Vice-chair, are you required by the duties of that position to pay strict attention to the events that occur at that World Service Conference?

A. Yes.

Q. In Mr. Hollahan's testimony as to the Fellowship giving permission to sue, do you know, in your best estimation -- do you recollect the events or the discussions pertaining to that?

A. Yes.

Q. Do I need to provide the minutes of the World Service Conference to refresh your memory?

A. No, you don't.

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THE COURT: I hope we're bringing this to a conclusion pretty quickly.

MR. MOORHEAD: Yes.

BY MR. MOORHEAD:

Q. Would you tell us, to the best of your recollection, what was asked and what was granted?

A. Well, what happened at World Service Conference that year, basically we passed a motion on providing jewelry and other types of merchandise like that by World Service Office. And then a board of trustee member brought a motion to the floor that was not in our Conference agenda that violated our Conference procedures, to take an action against a set jewelry company outside the Fellowship that provided merchandise. And with that, they took a voice vote, which was violation of our contractual agreement with Narcotics Anonymous, and how to proceed with anything. The voice vote was taken and it was for that case only. It had nothing to do with anything. It was an external matter.

THE COURT: It's 5 o'clock. There are two matters that I have to take care of by five, so I'm going to -- we're going to recess for about seven minutes.

(Pause.)

BY MR. MOORHEAD:

Q. Would you state what the Fifth Tradition of

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Narcotics Anonymous is? I'll refresh your memory. It's tough sometimes.

MR. SYNNESTVEDT: Excuse me, I couldn't hear you, Mr. Moorhead.

MR. MOORHEAD: I said, perhaps it would be better if you would read it out of this book here. Would you read the Fifth Tradition for -- this is not a document that's in dispute, is it? Just the italicized.

THE WITNESS: "Each group has but one primary purpose - to carry the message to the addict who still suffers."

BY MR. MOORHEAD:

Q. Thank you. Could you state what the document -- the book that you have there, the alleged infringing copy, Exhibit A in the Hollahan declaration, would you state -- I guess I'm going to have to do this. I wish I didn't have to.

A. Can I ask one question? Is this the exact copy -- is this the exact copy of what the case is being considered on?

MR. MOORHEAD: Well, that's a good question.

THE WITNESS: For me to read this whole document and say this is it --

THE COURT: Mr. Allen, a document which has been submitted as an exhibit, attached to the declaration by

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Mr. Hollahan, whose testimony you heard today and is in his declaration, in paragraph five of the declaration, Mr. Hollahan recites that on the 23rd of September, he attended -- of 1990, he attended a workshop in Florida, at which Mr. Moorhead gave him in a brown envelope a document that he said was "hot off the press." And that material which you have in your hand, which is Exhibit A, is a photocopy of what Mr. Moorhead gave him at that time.

THE WITNESS: See, what I'm trying to find out, is this a copy of that one, or is it a copy of the one that actually reflects on what he says he changed, because I didn't read this one?

THE COURT: The document is the document which Mr. Hollahan says was handed to him in a brown envelope by Mr. Moorhead.

MR. MOORHEAD: I think I can help straighten this out.

BY MR. MOORHEAD:

Q. The copy that your home group and other home groups distribute, has that been altered in any way from the Basic Text that was developed and approved by the Fellowship between 1978 and 1982?

THE COURT: I think you'll have to confine the question to what it is that Mr. Allen distributes, what

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his group distributes.

THE WITNESS: My home group distributes a baby blue form of First Edition Basic Text of Narcotics Anonymous, with the original fourth and ninth traditions in it, with the changes that make the Third Edition Revised, which are minimal of 20 to 25 different changes of cleaning up language.

BY MR. MOORHEAD:

Q. I want to ask you to clarify something. You said that it was a copy of the First Edition. When is it, in fact, not a copy of the approval, what the groups approved, the white copy?

A. Right. What it is, is the approval form of Basic Text of Narcotics Anonymous that we approved in 1982.

Q. Okay, thank you.

Now, the Third Edition Revised changes affected approximately how many words?

A. Approximately, 20 to 25.

Q. So I guess the book that your home group is distributing -- I would be sure that Ms. Moore would say the same thing --

THE COURT: Let's not -- put aside what Ms. Moore would say.

BY MR. MOORHEAD:

Q. Is, in fact, a true copy of the pre-'82, approved by

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the group's Basic Text with 20 or so words, minor changes that created the Third Edition Revised? Would that be a fair description?

THE COURT: I'm afraid I don't understand the question.

MR. MOORHEAD: It's a very difficult question, Your Honor, and it goes back to something that was said earlier about when the book was, and the copyrights and who held it and who owned it, and whether it's, in fact, been changed, as the plaintiffs indicate --

THE COURT: Well, Mr. Moorhead --

MR. MOORHEAD: -- of their copyrighting stuff, is the best way I can say it, I guess.

THE COURT: If you're going to ask the witness to compare texts, then let's just ask him that, and give him a document or show him a document and ask him, is this the same as that other document, or how does it -- it differs how?

MR. MOORHEAD: Hopefully, this is not going to cause a bad scene. These are infringed, I guess, copies of --

THE COURT: Please, let's not have you characterize what it is.

MR. SYNNESTVEDT: Could I have a moment, please, to look at this?

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THE COURT: Yes. I asked you before to show Mr. Fields and Mr. Synnestvedt documents that they have not seen.

MR. MOORHEAD: I indicated to him that there were a few things on here, but, as you can see, some of them might have escaped my mind at this point.

THE COURT: Are there going to be any other documents that we are going to be looking at?

MR. MOORHEAD: Well, I certainly would hope not. I don't know if it's appropriate, but I'm sure Mr. Synnestvedt could object. I would, you know -- I would like to say to everybody further, you know -- save further agony and embarrassment and confusion. And, if it's appropriate, I would like to make a motion to dismiss this matter and have us go back and settle.

THE COURT: Well, you're moving too fast for us, Mr. Moorhead. In the setting that we are now, which we're about to examine the witness on the document, which apparently had not been made available to counsel before, I wanted to inquire whether there were other documents that you wanted to ask about, taking advantage of the fact that Mr. Synnestvedt is talking to Mr. Hollahan. We'll find out what he thought that document was.

Mr. Synnestvedt, have you now consulted with Mr. Hollahan?

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MR. SYNNESTVEDT: Yes, Your Honor. This appears to be, as it says on the front, Basic Text Approved for Unpublished Literary Work.

MR. MOORHEAD: Approval.

MR. SYNNESTVEDT: Approval, excuse me. Basic Text Approval for Unpublished Literary Work. And it has a copyright notice, World Service Conference Literature Subcommittee of Narcotics Anonymous, 1981. We have no objection to the witness being interrogated on this subject.

THE COURT: All right, go ahead.

BY MR. MOORHEAD:

Q. Hopefully, this will not lead us down another trail. I am not going to ask the witness this, but I would like to at some point, if possible, submit some of this stuff for the record, if it's appropriate, and I'm sure you will advise me on how to accomplish that.

THE COURT: It will either have to be done -- if you're going to put a document into evidence -- if you're going to offer a document into evidence, you will have to do it by -- you'll have to do it either by getting a witness to identify it, or by getting agreement with your colleagues here, if you can get that. I certainly hope we don't have to go through a lot more tortuous work to identify documents.

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MR. MOORHEAD: I hope so, too.
BY MR. MOORHEAD:
Q. Is this a copy of the document that was voted on by all the groups in Narcotics Anonymous, and approved at the '82 World Service Conference?
A. Yes.
Q. Between this document and the book that you distributed in your home group, how many words, actual words have been -- are different from that document?
A. Approximately, 20, 25.
THE COURT: Is a copy of your document, your book, is that here? It's not an exhibit, is it?
MR. MOORHEAD: Yes, sir. These are all books, and there are more from different sources and different places.
THE COURT: Mr. Moorhead, all I'm trying to identify is what Mr. Allen was talking about. You asked him some questions, and the question is up in the air, unless we relate it to a particular document, of which you will show a copy to Mr. Synnestvedt.
MR. SYNNESTVEDT: I need to see a copy of it, Mr. Moorhead.
MR. MOORHEAD: Yes, I'd be delighted.
THE WITNESS: Yes.
THE COURT: That is the book which is made

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available by your home group?

THE WITNESS: Right.

THE COURT: Currently made available?

THE WITNESS: Yes.

MR. MOORHEAD: Your Honor, is it possible for me to have Mr. Sewell aver to that, and Ms. Moore aver to that, and Ms. Jackson from Virginia to aver to that?

THE COURT: It's sufficient for Mr. Allen to tell us what his home group shares.

MR. MOORHEAD: Yes.

THE COURT: Ms. Moore presumably isn't personally involved in what happens in Mr. Allen's home group, and Mr. Sewell isn't; is that correct?

MR. MOORHEAD: Correct.

THE COURT: Ms. Moore has told us what happens in her home group. Mr. Allen is telling us what happens in his home group.

MR. MOORHEAD: I don't really believe I have any further questions, unless there's any data that Mr. Allen would like to provide to the Court.

THE WITNESS: There's one thing I need to set clear. It's not my home group. It's the group that I belong to. I'm just an anonymous member that's been basically --

THE COURT: Where is that group?

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THE WITNESS: Allentown, Pennsylvania, 15th and Walnut, Wednesday night; 6th and Walnut on Tuesday night; 15th and Walnut on Saturday morning. I'm a member of a home group that says my anonymity is to be respected at all times. My group is to be allowed to be autonomous. It's in the traditions under Narcotics Anonymous which are not negotiable.

THE COURT: All right, Mr. Allen.

THE WITNESS: The group has been violated. I won't ask anymore questions.

THE COURT: Mr. Synnestvedt?

MR. SYNNESTVEDT: No questions, Your Honor.

THE COURT: Thank you, Mr. Allen. Do you have further witnesses?

MR. MOORHEAD: Well, I really don't see how anymore witnesses would shed anymore light on the subject matter before us at this point, Your Honor. However, I do have a couple of things I would like to submit and I would -- it's sworn statements. Upon review of these documents, they are sworn statements from the past World Literature chair that was the holder of the -- personal holder of the copyrights and supporting documentation, and a deposition from -- or a sworn statement and a photostatic copy of a --

THE COURT: Are these materials that you've

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shown to Mr. Synnestvedt?

MR. SYNNESTVEDT: No, sir.

MR. MOORHEAD: No, sir, but I would like to. I'm just saying that I would like to do that at this point.

THE COURT: All right. I'll ask that these documents -- while they are being studied by one of you, Mr. Synnestvedt or Mr. Fields, in conjunction with Mr. Hollahan -- perhaps we can save a little time rather than take another recess -- I think there's one additional question or a couple of questions that I'd like to put to Ms. Moore.

Ms. Moore, if you would return to the witness stand.

BY THE COURT:

Q. Ms. Moore, thank you for returning. I meant to ask a question, a further question or two about the book which you have testified is made available to persons at your home group meetings. You identified that, I understand -- as I understood your testimony -- as the photostat -- the same as the photostat documents which is Exhibit A to that Hollahan declaration.

A. Yes, it's just a version with a more updated cover, is what's available. But the text is unchanged.

Q. I see. Now, I believe you said that your group

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hasn't received any additional printed copies of that in some time. I'm not sure --

A. That's correct.

Q. For some months. Do you have any personal knowledge of what the source was of the copies that you have had and which you have shared of those coming to your meetings?

A. I never have seen anything being printed. I mean they just are. We just sort of save them for God. I know that doesn't go with the legal system.

Q. You were not involved in procuring them from some source somewhere?

A. No, I'm not.

Q. And they just -- so far as you know, they just physically turned up at some point?

A. Home group members do collating, do stapling and things such as that. I have been involved with the handling, with the physical processing. But as to securing printed matter, purchasing things, no. No, this is --

Q. Were you involved in collating or stapling?

A. Yes, I've done it.

Q. But you have no information as to where the pages came from that you collated?

A. No, no, because it's just something that was

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considered rather sensitive, and it's just not information that we felt needed to be known.

But when asked to donate time from my business, I've donated my time to do what I could to put books together for my home group, to get them on the table and to keep the cost down.

THE COURT: All right, thank you very much.

THE WITNESS: You're welcome.

THE COURT: Did counsel have any opportunity to examine the materials?

MR. SYNNESTVEDT: Just one moment, Your Honor.

We object to the admission of these on the ground of hearsay.

MR. MOORHEAD: On what ground?

MR. SYNNESTVEDT: On the ground of hearsay.

MR. MOORHEAD: If Mr. Synnestvedt can object to these sworn statements on the ground that they are hearsay, then I must also enter an objection to the sworn statements of Mr. Hollahan, brought in on the same ground.

THE COURT: Of course, Mr. Hollahan is here. Mr. Hollahan is here.

MR. MOORHEAD: Mr. Tooredman --

THE COURT: Mr. Tooredman has submitted a declaration which is part of the pleadings in this case.

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This has been presented -- it's been filed for some time. We, of course, are aware of its status, and it's been relied on by the plaintiff in presenting its request for injunctive relief.

Now, I don't know what the documents are that you are offering, but I think if you're going to ask for statements by people that -- whose contributions have been unknown to the plaintiff up until this moment, if you're going to ask for them to be admitted into evidence, then I think you're going to have to bring those persons to the witness stand so that they be available for examination. That, I think, is really only going to be fair. Otherwise, we have out-of-court statements, which the plaintiff hasn't done anything about up until this moment, that it's confronted with. It makes it a little hard to deal with.

MR. MOORHEAD: If I may. The notice and holidays prevented me from having these individuals here today. However, they said that they would be willing to come should this matter go any further and they were served a subpoena. They would be delighted to come. That would satisfy the requirements of their boss.

I would say to the judge at this point, if I may be so frank, is that the plaintiff's attorneys and the plaintiff has, in fact -- the plaintiff has printed these

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documentations in their own printings and mailings to the publisher over the past eight months that they have been threatening to do things. These are from the plaintiff's own documents. The only thing that is not, in fact, is that, I declare under penalty of perjury this gentleman, who was a World Literature Chair and the holder of the release letter of the copyrights that they refer to in their statements, has sent this to me to support the claims that I made. And this other thing is to show --

THE COURT: Mr. Moorhead, I guess I'm not getting the gist of what you're saying. You're not saying to me that the documents that you want to submit are documents that you received from plaintiff or from plaintiff's counsel, are you?

MR. MOORHEAD: No, sir. Over the course of the past eight months, the WSO has sent out packet after packet after packet of information and documents. These supporting documents were in those packets, Your Honor. The plaintiff knows full well that these documents are, in fact, true and correct. And he is aware of this individual. He knows them. He's from Florida. He knows this person. He knows that my activities are not the only activities going on around the world; that people are printing and publishing. I believe it's just an attempt to frustrate the truth in this proceeding here.

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I guess I'll just have to let it go.

THE COURT: If these people aren't available to you as witnesses today, but you say they can be at a later time, then they will presumably be available at the consideration of the application for a preliminary injunction. So why don't you hold those documents until that time?

MR. MOORHEAD: All right, sir. I'm going to trust the good judgment of this Court as to whether there should be a restraining order issued. I'm prepared to defend this case in full unless -- I don't want to call anymore witnesses. I don't want to get into anymore "he said, she said" stuff. If the Judge thinks that I need a restraining order, then, you know, that's the way it goes. I'll have to say that I plan to vigorously pursue all rights under law, but I would like to, at this point, if it's appropriate, make a motion for dismissal.

THE COURT: Mr. Hollahan, would you return to the witness stand, please?

BY THE COURT:

Q. Mr. Hollahan, you were here during Ms. Moore's testimony?

A. Yes, sir, I was.

Q. Does the WSO have some inventory of Third Revised Editions of the Basic Text?

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A. No, sir, we don't have an inventory of prior editions of the Basic Text. When a decision is made by the Conference to change the editions, the WSO is expected to distribute whatever remaining inventory is left, and to no longer carry a stock or an inventory of that edition, and then carrying the edition that was much used and approved by the Conference.

Q. Do you have any inventory of editions prior to the Fifth Edition?

A. I would say a small number; maybe five of each edition that we keep for archive purposes.

Q. Do you have any policy, Mr. Hollahan, with respect to the distribution of copies of the Basic Text for persons who are unable to pay the charge, which I think you said is now $8 per volume?

A. Certainly, for a number of years the offices have had a policy of working with the Hospital and Institution Committee, the Group Services Department and the International Department. We have sent out Basic Texts free when individuals have requested.

We usually try to judge somewhat the need when those requests come in, but we have been pretty free with fulfilling those requests.

Q. You heard Ms. Moore describe a situation in which her group serves a constituency, many of whose members

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are, it would appear, indigent or at least not in the position to send several dollars for a book.

Is that a situation in which it would be part of your policy to make Basic Texts available on a free basis?

A. I certainly feel that the board of directors would consider that request. Perhaps, first the members of that group would be encouraged to talk to their area service committee and to the regional committee before coming to the World Service Office.

We have a literature distribution network in groups that have special requests like that. It first goes to the local committee, and then to the regional committee, and then to the world. At other times, the requests come directly to the World Service Office.

Q. If such a request came to you and was approved by your directors, or who would be in a position to make that decision, the text that you would have available for distribution would be the Fifth Edition; is that correct?

A. Yes, sir.

Q. I take it you have no plans to republish any of the prior editions prior to the Fifth Edition; is that right?

A. Well, there's no plans by the office itself to republish them in addition. That would be a decision

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that the Conference would have to make. Certainly, I do not believe the office would stand in opposition to any proposal of that nature.

THE COURT: I've just taken the liberty of calling Mr. Hollahan back to the stand. I don't know if there are any questions that either of the parties would like to ask him, addressed to the particular issue that I put to Mr. Hollahan?

MR. MOORHEAD: I would like to ask him a couple questions.

THE COURT: Go ahead, Mr. Moorhead.

BY MR. MOORHEAD:

Q. What do you think the possibilities are that the board --

MR. SYNNESTVEDT: Excuse me, I can't hear you.

BY MR. MOORHEAD:

Q. What do you think the possibilities are, George, in view of everything that's gone on, that the board of directors or Conference would entertain such an idea?

A. It would be very hard for me sitting here where I sit, as a member of this Fellowship and a special worker, to calculate that percentage. I certainly feel in my heart that the question itself is one that would be addressed, and addressed fairly.

Q. How, in the face of all the one-way communication,

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could you possibly draw such an inference that the issue would be treated fairly?

THE COURT: That I won't allow. I won't let you pursue that kind of argumentative question.

MR. MOORHEAD: I don't really guess I have anymore questions, George. I mean, you know, whatever you guys got to do, you got to do.

THE COURT: Well, Mr. Moorhead, I'm perfectly happy to have you ask Mr. Hollahan factual questions that flow from the questions that I put to him. All that I'm asking, that you not get into simple argument between counsel and witness. For this purpose, I'm regarding you as counsel. I'm not asking you to go ahead and put questions.

MR. MOORHEAD: I don't quite know how to -- what to say or what to ask. I can just say that based on my experience, that is never going to happen. That's all I can say, so there's no point in my bothering him because, you know -- you know, I can go through here and go through here and go through here and go through here and go through -- it gets pointless after awhile, Your Honor. It's just not applicable.

THE COURT: Mr. Synnestvedt, do you have any questions for Mr. Hollahan?

MR. SYNNESTVEDT: No, Your Honor, I do not.

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THE COURT: Thank you, Mr. Hollahan, you may step down. I realize, in calling Ms. Moore back to the stand, I didn't give either the plaintiff or the defendant an opportunity to question her on questions that I put to Ms. Moore. And if either you, Mr. Moorhead, or you, Mr. Synnestvedt, wish to question Ms. Moore with respect to the matters I asked her about, I will ask you to come back again.

MR. SYNNESTVEDT: No thank you, Your Honor. No further questions of Ms. Moore.

MR. MOORHEAD: It's not necessary, Your Honor. Thank you.

THE COURT: We have spent the day hearing testimony in this matter. It is not the kind of a controversy that a court welcomes. It is, quite evidently, a controversy which is essentially internal to a group with many, many members, many dispersed subentities, a common purpose, a common purpose of great social consequence.

It is evident that the Fellowship has engaged over the years the devoted participation of tens of thousands, now maybe hundreds of thousands, of people, people who have in their own lives been deeply troubled, and who have striven very hard to liberate themselves in the course of time, to help liberate others to brave this

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sort of peril.

For a controversy to arise in an enterprise of that kind is regrettable, certainly one that is controversy that seems to be deeply schismatic. It is more regrettable, and it appears to be beyond the capacity of the participants to resolve their differences internally, recognizing the larger importance of common purposes than the areas of disagreement. That is to say, the more regrettable one. An appeal is made to the secular authority of the courts to make dispositions.

I asked the parties to try their best to reach some resolution, at least on an interim basis, not on a final basis, and the efforts on the 27th and 28th of December evidently were not fruitful. Today's testimony only underscores for me the importance of some serious attention being given to reconciliatory activity rather than activity of a divisive kind. I rather appreciate that with people feeling deeply, as evidently people do on each side of this issue, it is the tendency of each side to think, well, I am the reconciler, and it's the people over there who are being divisive.

I suppose in this courtroom right now, Mr. Wolfe and I are the only people who are in a position to say, maybe both sides suffer a little from the sins of inflexibility and certainty that virtue is mine and

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vice is thine.

I would ask you all to give some close attention to the possibility that there is more that you have in common than that divides you, and to carry on controversies of this kind is only destructive of, and diversionary from, your common purposes.

One point that I find particularly disturbing is to be told, as, in effect, Ms. Moore was telling me, that we have poor people who are greatly in need of guidance. They can't afford $8 a book and, therefore, we want to make texts available to them for little or nothing, or at least we want to make access to such texts available.

I hear from Mr. Hollahan that, in principle, the WSO has no difficulties with furthering what would seem to be such a clearly laudable goal, assuming one believes in the purposes of Narcotics Anonymous. But, of course, the resolution which would flow from an assent by the directors of the WSO to making texts available, free to Ms. Moore's home group, and possibly to other groups which have constituencies which really can't pay, afraid of $8 a volume, that resolution begins to seem remote when one is told, yes, but the text that WSO has in stock, its Fifth Edition, is not a text that we in conscience could accept. It's a little curious to be told by Ms. Moore that maybe the Third Revised Edition

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might be acceptable. They would have to talk to the group about that. But it's certainly not the Fifth Edition.

That was apparently beyond the pale in discussion with the group. I have not inquired into, and I do not intend to inquire into, what the debates are with respect to what texts are appropriately within the compass of the revered 12 traditions, and what are not. Debates of that sort have a habit of being unproductive. Yet, I can't believe that if you people on both sides of the aisle, both sides of the litigation, really have a shared earnest commitment to people gripped by addiction, that you cannot find a way of reconciling your differences, recognizing that shadings of verbal meaning may usefully be the subjects of honest debate rather than insuperable obstacles to getting on with your real business of saving people who are desperately ill.

I guess I'm saying to you that after listening all day, I think there's an awful lot of self-righteousness on both sides of this case. And for people who are trying to save others, that sort of self-righteousness is not entirely attractive.

So now you have my preachment. I'm going to leave you for some hours with that preachment to chew over. I'm going to challenge you, both sides, to have

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the courage of your convictions to talk with one another, not against one another, but with one another, with a view, at least for the moment, of reaching accommodations -- maybe small accommodations arrived at now -- to obviate the need for going forward one way or another with an application for a Temporary Restraining Order, and beyond that a Preliminary Injunction.

Maybe accommodations arrived at right now could pave the way for larger accommodations so that you could then use more fruitfully the machinery of the World Conference and get back to reasoned collective debate rather than imposing solutions on one another.

I don't know whether you really have the courage of your conviction. I wonder whether each side isn't simply taking a refuge in its self-described virtue. Maybe if I talk long enough in this vein you can recognize me as a common enemy, and that will give you something to unite about.

You're not the only people who recognize the evils of narcotics addiction. A person in my line of work sees it every day in this courtroom, and these courtrooms are replicated by the tens of thousands throughout the country. For every one of your home groups, there are scores and scores and scores of courtrooms. So if you want to work at these problems,

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work at them.

Work at them for the balance of this evening and tomorrow morning. You can come back here tomorrow at 11:30, and you can tell me whether you've been able to manage to talk constructively together.

As I understand it, the conversations up to now, on the 27th and 28th, were between Mr. Moorhead on the one hand, and Mr. Synnestvedt and Mr. Fields on the other. Mr. Synnestvedt and Mr. Fields are lawyers. I was about to say only lawyers. I don't mean that in a disparaging sense, or I would disparage myself. I'm only a lawyer, too. But we're instrumentalists in this business. It's Mr. Hollahan and his colleagues on the one hand, and Mr. Moorhead and his colleagues on the other hand who are going to have to decide whether they can do something constructive.

I think the next set of conversations -- and I'm going to leave you here in this courtroom. This is a good venue to start. Its neutral ground has a certain severity that may remind you of your common obligations. I think it should be the attorneys and the litigants, Mr. Hollahan as well as his attorneys, Mr. Moorhead -- and I hope, Mr. Moorhead, your colleagues with you -- talk here in the courtroom, go out and have supper, talk more there. If you can't work something out this evening,

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then you'll have a few hours in the morning. But take your responsibilities seriously.

Forget the posturings of this courtroom. If you come up empty-handed by tomorrow morning at 11:30, then I will go forward to consider the motion for a Temporary Restraining Order. Good night.

(Court adjourned the proceedings at 6:10 p.m.)

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